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Amendments to Part D – Development in the Business Zones (as of 1 July 2013)

Amendment No.	Location	Description	Adoption Date	Enforcement Date
4	Part D, section 9	Seven Hills Business Park	Deferred	
12	Part D, Section 8, Section 1.5	Point (5) amended to reference Part R as amended	23 March 2011	3 May 2011
12	Part D, Section 8, Section 4.22	Section 4.22 Water Management repealed by Part R as amended	23 March 2011	3 May 2011
12	Part D, Section 8, Section 4.0	Section 4.0 renumbered due to repeal of Section 4.22 Water Management by Part R as amended	23 March 2011	3 May 2011
12	Part D, Appendix A	Deleted points 7 & 8 and replaced with reference to Part R as amended	23 March 2011	3 May 2011
14	Part D, 4.13	Insertion of downstream owner's consent for business development	30 April 2014	7 April 2014
14	Part D, Appendix A	Insertion of downstream owner's consent in the development application checklist	30 April 2014	7 April 2014

1.0 INTRODUCTION

1

INTRODUCTION

1.1 Provisions of Blacktown Local Environmental Plan 1988

One of the major aims of Blacktown Local Environmental Plan (LEP) 1988 is to simplify and modernise the development controls applying to the business centres in the City of Blacktown. The LEP contains 3 business zones. These zones are briefly explained in section 2 of this Part of Blacktown Development Control Plan (DCP) 2006.

1.2 Purpose of this section of Blacktown Development Control Plan 2006

The purpose of this Part of the DCP is to provide detailed guidance for the preparation and assessment of Development Applications for sites zoned for business purposes. It must be read in conjunction with Part A (Introduction and General Guidelines) of the DCP, which outlines Council's general requirements for all development and gives advice on submitting Development Applications. Specific additional requirements for applications for business development are listed in section 1.4 below.

1.3 Definition

For the purpose of this Part of the DCP, **"Gross Floor Area"** (GFA) is defined as follows:

The sum of the areas of each floor of a building where the area of each floor is taken to be the area within the outer face of the external enclosing walls as measured at a height of 1400 millimetres above each floor level excluding-

(a) columns, fin walls, sun control devices and any elements, projections or works outside the general lines of the outer face of the external wall;
(b) lift towers, cooling towers, machinery and plant rooms, ancillary storage space and vertical air-conditioning ducts;
(c) car parking needed to meet any requirements of Council and any internal access thereto; and
(d) space for the loading and unloading of goods.

1.4 Additional Requirements for Development Applications

Council's general requirements for the submission of a Development Application are outlined in Part A (Introduction and General Guidelines) of the DCP. In addition to these requirements, applications for development in the business zones should be accompanied by:

(a) details of any proposed public pedestrian areas and walkways;

(b) a **landscaping plan** showing existing trees to be retained and including full details of proposed planting, paving, lighting, outdoor furniture and the like;

1

INTRODUCTION

(c) comprehensive **floor plans** showing:

(i) Car parking areas, parking layout and allocations (e.g. for customers and staff).

(ii) Entry and exit driveways and internal traffic movements.

(iii) The location of entrance and exit doorways, loading docks and the like.

(iv) The specific use of various portions of proposed buildings (eg offices, amenities, meeting rooms and storage areas).

(v) Floor area calculations for each floor of proposed buildings.

(d) **elevations** which indicate materials of construction, external finishes and details of the reflectivity of external glass;

(e) details of traffic generation and the likely impact on traffic flows where the Blacktown, Mt Druitt and Seven Hills Shopping Centres and concerned; and

(f) **shadow diagrams** for development proposed adjacent to non-business areas, pedestrian malls and public spaces.

All Council requirements should be discussed with Council's Planning and Development Services staff prior to preparation and submission of the Development Application.

2.0 THE BUSINESS ZONES

2

THE BUSINESS ZONES

Blacktown Local Environmental Plan (LEP) 1988 contains 3 business zones, each designed for a different purpose.

2.1 The 3(a) General Business Zone

One of the objectives of the LEP is to allow for a variety of retail and commercial uses in Blacktown whilst consolidating existing commercial centres. To enable this to occur all existing and proposed business centres throughout the City have been principally zoned 3(a) General Business. This zone is flexible in that only totally incompatible uses are listed as being prohibited. As a result most applications for development within this zone can be assessed on their merits taking into account the objectives of the zone, the provisions of Blacktown LEP 1988, the guidelines within the Development Control Plan (DCP) and those matters listed under Section 79C of the *Environmental Planning and Assessment Act 1979*.

Within the 3(a) General Business zoned areas throughout Blacktown there exists an established hierarchy of retail centres, with certain centres fulfilling certain designated functions at various levels within the hierarchy. The different levels of retail centres within the retail hierarchy are identified in Section 3 of this Part of the DCP. Development proposals should be consistent with the level of function designated for the particular centre.

2.2 The 3(b) Special Business Zone

This business zone applies to certain land adjoining the Blacktown Central Business District (Blacktown CBD), the Riverstone District Centre, the Mount Druitt Village (south of the railway line), the Seven Hills District Centre and the Mungerie Park sub-regional centre. The purpose of this zone is to cater specifically for the future expansion of these commercial centres by providing land on the fringe for support development. This zone is designated to accommodate uses such as commercial offices, light industrial activities and business support services. Only limited retailing activities are permitted in the 3(b) zone to ensure that land uses in these zones do not compete directly with adjoining retailing within the 3(a) zone. Retail development in the 3(b) zone is limited to:

(a) shops which service the daily convenience needs of workers and residents of the area; and

(b) shops which specialise in the retailing of bulky goods.

As with the 3(a) General Business zone, all development (apart from certain changes of use) requires Council's development consent and only incompatible uses are specifically prohibited. Development must be consistent with the objectives of the 3(b) zone, any other provisions of the LEP and must comply with the guidelines for development contained in the DCP.

As these zones are generally located away from the major transport nodes of the respective centres, it is important that all car parking is provided on-site.

2.3 The 3(c) Entertainment and Tourism Zone

This zone applies only to that land occupied by "Australia's Wonderland " at Eastern Creek, in recognition of the development's uniqueness. This zone is intended to promote the site as a tourist, recreational and employment focus for Blacktown. Clause 29 of Blacktown LEP 1988 outlines additional requirements for this zone.

Residential development within this zone should be limited to development which is ancillary or complementary to amusement parks, entertainment facilities, recreational facilities or tourist facilities.

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THE BUSINESS ZONES

3.0 HIERARCHY OF BUSINESS CENTRES

3

HIERARCHY OF BUSINESS CENTRES

3.1 The Blacktown Retail Hierarchy

In 1981 a retail strategy was established for the City of Blacktown which has been periodically reviewed to ensure it remains relevant to current retail trends. Such reviews have occurred in 1986, 1991 and 1999. The Study identified the location and size of all business centres in the City and gave recommendations for their future growth or otherwise, based upon projected population and expenditure figures.

Within the City of Blacktown there are 4 main levels of business centres these being:



Table 3.1
Levels of Business Centres within the City of Blacktown

Of the existing and proposed business centres in the City of Blacktown, 2 are sub-regional centres (Blacktown CBD and Mount Druitt Town Centre) and 5 are district centres (Seven Hills, Plumpton and the proposed centre at Parklea and the proposed expanded centre at Quakers Hill and Riverstone). Other centres serve local retail and commercial needs to varying degrees.

3.2 Other Business Uses Outside the Retail Hierarchy

There are a number of sites throughout the City which do not form part of Blacktown's adopted retail hierarchy but where commercial uses could occur with Council's consent. These sites are not intended to develop or expand as new local retail centres, but are intended to operate as indicated below.

3.2.1 Mixed Business

Mixed business are shops which provide for the daily convenience shopping needs of nearby residents. Mixed business are permissible with the consent of Council in residential zones.

3 HIERARCHY OF BUSINESS CENTRES

3.2.2 Minchinbury Cellars

Location : Lot 1, DP 877890, Corner Barossa and Minchin Drive, Minchinbury

The significance of the site is directly related to the use of the site in its role in the establishment of the Australian wine industry - sparkling wines in particular. The site is locally significant for its impact as a major landmark - the cabbage trees palms and the profiles of the buildings in an open field. The site is recognised as a Heritage Item within Schedule 2 of the Blacktown LEP 1988 and is recorded by the National Trust.

Any use of these buildings should be sympathetic to the site's historical significance and could possibly incorporate tourist facilities, restaurants or other like commercial uses.

In 1995 Council approved a subdivision of the historic Minchinbury winery site to create the following:

(1) 1 commercial lot containing the winery building and curtilage.
(2) 1 residue lot intended for a future integrated housing development.
(3) 4 standard residential lots.

Guidelines for the development of the excised residential allotments are incorporated in Part I (Supplementary Provisions for Specific Established Areas) of the Blacktown Development Control Plan (DCP) 2006.

3.2.3 Metwest Professional Offices

Location: Lots 12 to 16, D.P. 2579, Rooty Hill Road North, Rooty Hill.

This site has been developed for commercial office purposes only and no retail development will be permitted. This restriction is necessary given the site's close proximity to the established large local centres of Rooty Hill. Expansion of the existing commercial office space by more than 15% will not be permitted.

4.0 GENERAL GUIDELINES FOR DEVELOPMENT

4

GENERAL GUIDELINES FOR DEVELOPMENT

4.1 Building Design and Construction

In the sub-regional and district centres buildings should relate to the human scale and should be attractively designed. Whilst a variety of design and use of materials is encouraged, some continuity of style should be maintained within each centre. All Development Applications for new buildings or extensions to existing premises in these business zones should be accompanied by details of building construction and the materials to be used on the external facades. This is necessary to ensure that new buildings are harmonious in both form and style with the existing or intended development within the particular centre.

In local centres, especially the smaller centres, development should not be intrusive or out-of-scale with the surrounding residential area.

In all business zones developments should incorporate suitable access and facilities for the aged and disabled, with particular attention given to wheelchair access. Further, developments should incorporate all-weather protection (e.g. awnings) for pedestrians.

The reflectivity of external glass used in a building is to be restricted such that surrounding areas are not subject to discomfort through glare and intense heat. The reflection from such buildings shall not affect road traffic and shall have 20% maximum reflectivity.

Where possible developments should promote and integrate the use of public transport to maintain and enhance the general amenity of centres through the reduction of traffic, noise and air pollution.

4.2 Height of Buildings in Local Centres

The maximum height of any building within the business zone must comply with the relevant clauses of the current Blacktown Local Environmental Plan and associated Height of Building maps.

4.3 Building Setbacks

In assessing any application for business development Council will take into consideration whether a building setback is required for aesthetic purposes or streetscape design (e.g. the reduction of bulk and scale of buildings by incorporating boundary setbacks and terracing of storeys) or to enable adequate sight distances for traffic using adjacent roads. In some cases a zero building setback may be acceptable.

4.4 Landscaping

4.4.1 General requirements

New commercial/retail development must incorporate landscaping to improve the streetscape in business centres. Landscaping can be achieved by:

(a) setting buildings back and creating public plaza with planter boxes, trees and seating;
(b) the widening of footpath areas;

(c) paving and tree planting in footpath areas; and

(d) incorporating planter boxes on building levels above ground.

The last measure listed above is particularly effective if the building is terraced or has landscaped decks/balconies and podium levels. This form of landscaping results in the "softening" of the visual appearance (scale and bulk) of large buildings.

Footpaths in business centres shall be paved by the developer in materials consistent with Council's design guidelines for the specific centre.

Open car parking areas should be landscaped to reduce the impact of hard paving. Established tall trees with wide-spreading foliage provide desirable shade and reduce the effects of heat in open car parking areas. With multi-deck parking areas the planting of trailing plants within planter boxes will be required to soften the visual impact of such structures.

4.4.2 Tree Planting and Retention

Council will require a cash contribution for tree planting in footpaths. Council may accept the planting of trees by the developer in lieu of the cash contribution, subject to Council's approval of the types of trees to be planted and associated works.

Deciduous trees are preferable for public paths and pedestrian areas, especially where seating is provided, to ensure that the maximum amount of winter sunlight is available.

Clause 25 of Blacktown Local Environmental Plan (LEP) 1988 provides that any tree shall not be ringbarked, cut down, topped, lopped, removed, injured or wilfully destroyed unless prior written approval of Council has been obtained. In any development of sites within business zones existing trees should, where possible, be retained and integrated into the overall design of the site. Measures must be taken to protect existing vegetation from damage and destruction during construction.

4.5 Pedestrian Access, Public Spaces and Open Space

Any development should aim to increase the area of public spaces and pedestrian links that are available in the business centres. In designing such areas consideration should be given to solar access, protection from wind and rain and provision of 24 hour public access. Council will not favourably consider proposals which reduce the amount of public space in a business centre or which remove important pedestrian links.

Attention is also drawn to the provisions of the *Local Government Act 1993* which authorises Council to grant a lease or licence of a footpath for restaurant purposes. Use of outdoor spaces in this way will be supported by Council in appropriate locations.

4

GENERAL GUIDELINES FOR DEVELOPMENT

4.6 Vehicular Access and Circulation

Adequate space shall be provided within any development site for the loading and unloading of service vehicles. The standard of loading facilities required will depend upon the nature of the development and the uses to be carried out. For certain developments Council may require the provision of parking for courier vehicles. Where possible loading facilities should be located at the rear of developments with access off a laneway system.

Applicants are urged to discuss proposals for car parking with Council prior to final design stage. (Refer to the next section of this Part and section 5.3 of Part A (Introduction and General Guidelines) of the Development Control Plan (DCP) for Council's parking requirements).

Vehicular movements associated with loading facilities and customer parking should be separated wherever possible and all pedestrian movements should be segregated from vehicular movements to avoid possible conflict and congestion.

Ingress to and egress from a site should be located where they will cause least interference with vehicular and pedestrian movement on public roads. Direct access will not be permitted off existing or proposed high traffic volume roads wherever an alternative access can be provided. Road access to parking areas will not be permitted in close proximity to traffic signals, intersections or where sight distance is inadequate. Applicants should discuss proposed access arrangements with Council's Planning and Development Services staff prior to final design stage.

The number of access points from a site to any one street frontage should be limited to one ingress and one egress. Parking areas should have a separate entrance and exit where more than 50 car spaces are provided or where the development generates a high turnover of traffic (i.e. a supermarket or drive-in service facility).

The potential for on-street queuing should be eliminated by the provision of sufficient standing areas on-site for vehicles entering the car parking and loading areas. Provision is to be made for all vehicles to enter and leave a site in a forward direction.

4.7 Service Laneways

Service laneways are often required, usually in local centres, to provide rear loading access for delivery vehicles and access to rear car parking where the retail/commercial development has a zero lot line or minor setback only to the fronting street.

Where a service laneway is indicated on the DCP map relevant to a business centre, Council will require the dedication and/or construction of part of the laneway which is contained within the development site where it is considered that the proposed development creates a demand for the laneway.

4

GENERAL GUIDELINES FOR DEVELOPMENT

4.8 Car Parking

4.8.1 Requirements

On-site car parking is to be provided by developments in accordance with the standards detailed in Part A (Introduction and General Guidelines) of the DCP. Development within the Blacktown Central Business District and Mount Druitt Town Centre are subject to different parking requirements as a result of their sub-regional function. These specific requirements are outlined in section 5 of this Part of the DCP.

4.8.2 Monetary Contributions in Lieu of Parking Provision

Monetary contributions in lieu of on-site car parking provision are generally not considered appropriate. Where on-site car parking requirements cannot be met, developers may need to reduce the scale of their proposal or make arrangements with adjoining landowners in order to provide sufficient car parking.

However, in special circumstances, such as where on-site parking presents undesirable traffic problems or affects Council's overall strategy for the centre (such as in the Blacktown CBD), Council may require a cash contribution in lieu of the provision of some or all parking on site, pursuant of Section 94 of the *Environmental Planning and Assessment Act 1979*. Council's full Section 94 requirements and policies in relation to car parking contributions are documented separately in the relevant Contributions Plan for this purpose.

Such contributions will be reviewed and indexed regularly to take account of changes in the estimated cost of acquisition of required land and the cost of construction appropriate parking facilities.

4.8.3 Design

Car parking areas are to be designed in accordance with the standards outlined in Part A (Introduction and General Guidelines) of the DCP.

4.8.4 Additional Parking Requirements

The use of stack parking is not favoured and may only be permitted in small quantities under special circumstances.

Car parking areas and all internal roads shall be constructed of hard-standing, all-weather, material, with parking bays and circulation aisles clearly delineated. If the parking area is to be used at night, luminous markings are required.

Where car parking is provided under buildings or in multi-deck structures, the following minimum headroom clearances are required:

(a) 2.2m clear of any beams or service installations in undercover parking areas; and

(b) 4.6m clear of any beams of service installations in undercover loading dock areas.

Parking areas should be signposted to indicate the availability of off-street parking, with entry and exit points clearly visible from both the street and the site. All parking areas are to include suitable landscaping treatment (refer to section 4.4 on page 7)

4.9 Signs

Most advertising signs and structures require a licence under the *Local Government Act 1993*. Details can be obtained from Council's Planning and Development Services staff. Further guidelines are contained within Council's Local Approvals Policy.

4.10 Solar Access

All development should be designed so as to minimise overshadowing and maximise solar access to adjoining public spaces or adjoining residential land.

Council may require the submission of shadow diagrams to assess the effect of the proposed development on the surrounding sites, particularly public areas and residentially zoned land.

4.11 Community Facilities

Developers are encouraged to incorporate community facilities in any proposed development for the larger retail centres (district and sub-regional). As well as facilities such as child care centres, the provision of public plaza areas with seating and planting is encouraged so as to provide meeting areas for communities using these larger business centres and provide lunchtime seating areas for the workers within these centres.

Where appropriate, facilities associated with public transport (including bus bays, shelters and seating) are encouraged to be provided.

4.12 Residential Development

Residential development is seen as a desirable additional use in business zones, adding to their diversity and enlivening the centres outside normal business hours. In smaller local centres such development would probably take the form of a dwelling or flats above a shop or office, provided the finished development is no higher than 2 storeys. In larger centres, particularly in the Blacktown CBD, there exists the opportunity to incorporate residential units into a retail/commercial development.

Such development must comply with the residential standards outlined in Part C of the DCP (Development in the Residential Zones). However, due to the unique nature of residential flat development in business zones, some of these requirements may not be applicable. Applicants are advised to contact Council at an early stage to discuss Council's requirements and standards for residential development in the business zones.

4 GENERAL GUIDELINES FOR DEVELOPMENT

4.13 Drainage

Adequate provision must be made for the collection and disposal of surface and roofwater run-off. All stormwater shall be either reticulated to the street gutter or piped to a suitable location as approved by Council.

Where a site proposed for business development, falls away from the fronting street, the Development Application must include documentation establishing a suitable drainage solution including inter-allotment drainage (and proposed easement) through downstream properties, and written permission from downstream property owners where applicable. Section 88K of the Conveyancing Act 1919 provides suitable mechanisms to negotiate the creation of easements where an amicable arrangement cannot be made proceedings instigated under Section 88K may be taken into consideration when determining a Development Application in which case a Deferred Commencement Consent may be considered at the discretion of Council).

Council will not support the placement of fill on land to channel stormwater drainage back to the street.

5.0 SUB-REGIONAL CENTRES

5

SUB-REGIONAL CENTRES

5.1 Description

A sub-regional centre is one which has major office, retail and community facilities and is situated on highly accessible transport routes. Both the Blacktown Central Business District (CBD) and Mount Druitt Town Centre have been identified by the State Government as sub-regional centres. Such centres are also the focus for the City's community facilities as well as commercial activity and transport facilities.

A sub-regional centre will accommodate major shopping facilities, including at least 1 department store, major supermarket facilities, cinemas, a wide range of speciality shops and services, branches of major banks and building societies, as well as community facilities such as libraries, baby health care centres etc. As far as possible, a diversity of uses is encouraged in these centres, including the integration of residential accommodation.

Sub-regional centres will, in general, range in size from 50 000 to 150 000 sq.m gross floor area at full development.

5.2 Car Parking

Section 5 of Part A (Introduction and General Guidelines) of Blacktown Development Control Plan (DCP) 2006 details the general principles and specific land use requirements for car parking within the City of Blacktown. Table 5.1 of section 5 (refer to pages 20 to 22 of Part A) documents Council's car parking standards for specific types of development.

The car parking standards relevant to development within the Blacktown CBD and Mount Druitt Town Centre are reproduced in this Part of the DCP in Table 5.1 on page 13.

However reference should always be made to Council's complete guide to car parking standards and guidelines within section 5 of Part A, as Table 5.1 on the following page is only an extract.

SPECIFIC LAND USE	CAR PARKING REQUIREMENTS
Commercial/Office Premises (including Medical Consulting Rooms in Business Centres)	1 space per 30sq.m GFA, plus 1 space per 2000sq.m GFA for courier/service vehicles.
Retail Shop/Showroom	Shops 200sq.m or greater - 1 space per 22sq.m GFA Shops less than 200sq.m - 1 space per 30sq.m GFA
Supermarket & Vegetable/Fruit Market	Shops 200sq.m or greater - 1 space per 22sq.m GFA Shops less than 200sq.m - 1 space per 30sq.m GFA
Restaurant (other than Fast Food, Drive-in or Take-away)	1 space per 30sq.m GFA
Cinema and Theatre	1 space per 8 seats or 1 space per 15 sqm of GFA, whichever is greater
Fast Food, Drive-in or Take-away Restaurant	12 spaces per 100sq.m GFA, plus 1 space per 5 seats or 1 space per 10sq.m of dining area, whichever is the greater.
Catering & Reception Centre	
Hotel & Tavern	1 space per 30sq.m GFA
Club	Refer "NOTE" below
Motel	Refer "NOTE" below Accommodation - 1 space per unit Employees - 1 space per 2 employees Restaurant - 1 space per 10sq.m of dining area Function Room - 1 space per 3 seats
Outdoor Display & Sales Area (such as car, caravan & boat showrooms)	1.5 spaces per 200 sq.m site area

Table 5.1
Specific Car Parking Requirements for the Sub-Regional Centres

NOTE T0 TABLE 5.1
Where no rate is given the onus will be on the applicant to provide sufficient information to satisfy Council that the applicant's proposed parking supply is adequate.

5.3 Blacktown Central Business District – General requirements

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Objectives

The purpose of these specific development guidelines for the Blacktown CBD is to enable Council to effectively control the character and quality of development in the centre so as to achieve the concept of a compact, viable and attractive city centre so as to achieve the concept of a compact, viable and attractive city centre connected by a convenient pedestrian system linking the various uses and activities.

Council's objectives in relation to development in the Blacktown CBD are to:

(a) promote the Blacktown CBD as a retail, commercial and community focus for the City of Blacktown;

(b) improve the pedestrian circulation system and the general amenity of the pedestrian environment, through attention to solar access and the development of landscaped urban spaces;

(c) improve the character of the centre by promoting aesthetically pleasing and architecturally interesting development which is sympathetic to adjacent developments; and

(d) ensure that adequate car parking facilities are provided, vehicular traffic conflicts and hazards are minimised and pedestrians and vehicles are adequately separated.

Car Parking Strategy

Council has adopted a parking strategy which limits the amount of on-site parking to be provided on land in certain locations within the CBD and requires all car parking to be provided on-site in other locations. This strategy aims to minimise the impact of traffic in the highly pedestrianised "heart" of the centre, maximise accessibility of developments to car parking and enhance efficiency of the proposed ring road system.

The car parking strategy designates locations where:

(a) Council may allow only minimal car parking to be provided on-site - an upper limit of 25% of the total car parking requirement. The balance of the car parking is to be provided by way of a monetary contribution for car parking;

(b) Council may give consideration to the partial provision of car parking on-site and acceptance of a parking contribution in lieu of car parking spaces not provided. The exact mix of on-site and off-site parking will be determined by consideration of the traffic impact of the proposed development. As a guide, Council may permit 50% of car parking to be provided on-site in designated locations; and

(c) Council may require all car parking to be provided on-site.

The location of the designated "restricted" on-site parking provision areas is shown in Figure 5.1 (refer page 15).

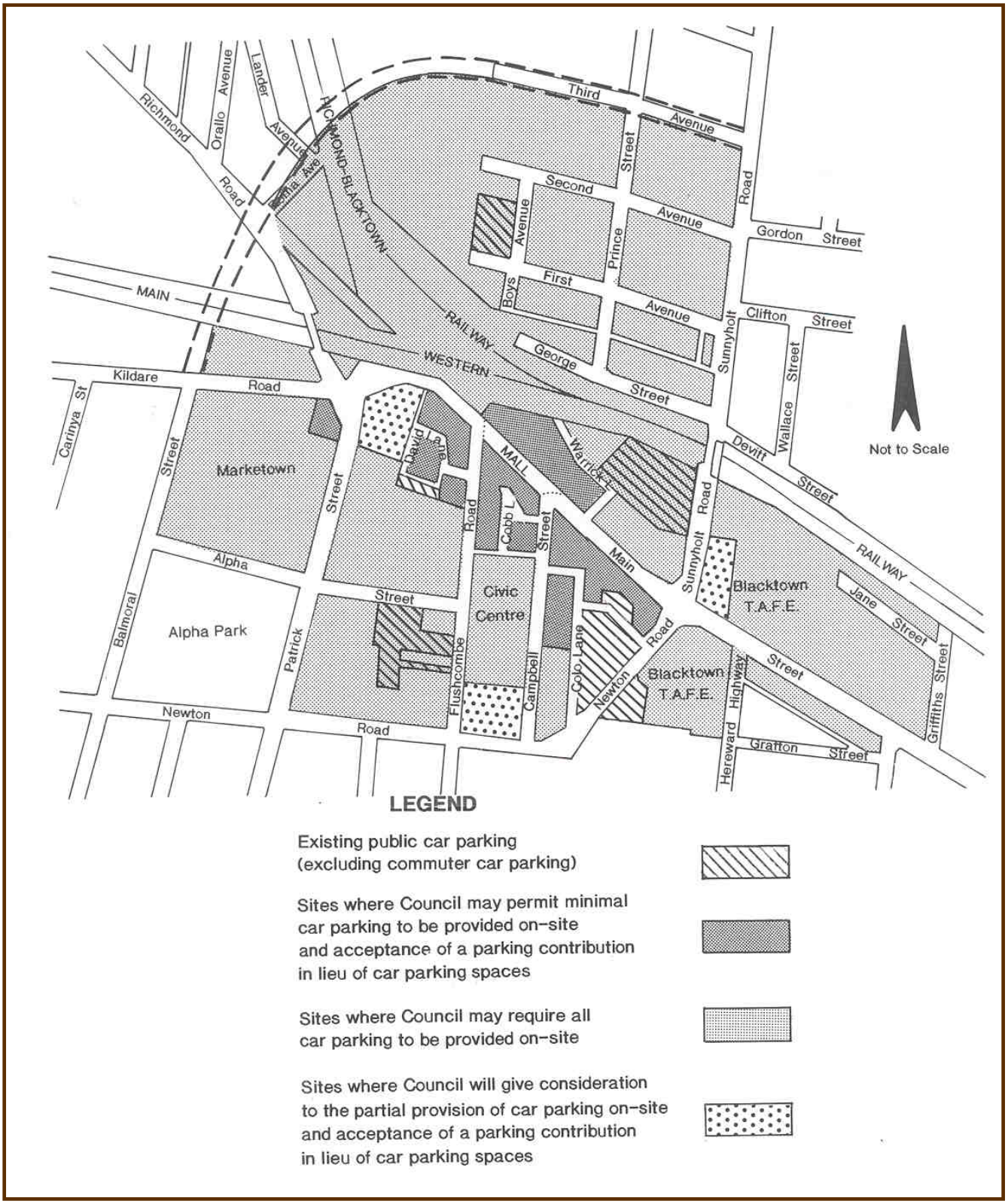


Figure 5.1
Blacktown Central Business District – Vehicular Access and Parking Strategy

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In determining the amount of car parking to be provided in the CBD Council will consider each Development Application on its merits having specific regard to the following:

(a) the size of the development;

(b) the demand for parking in the locality generally;

(c) the general flow of traffic in the area;

(d) any potential traffic and/or pedestrian conflicts;

(e) any site constraints; and

(f) times of peak parking demand for the proposed development compared to that of existing development in the Centre and specifically on adjoining land.

Applicants will be required to provide information on the above matters to justify their proposed car parking provision.

Design Guidelines

All development should take into account the general development guidelines detailed in section 4 of this Part of the DCP and the provisions of Council's Urban Design/Landscape Scheme for the Blacktown CBD, particularly the Master Plan adopted by Council. The Master Plan is reproduced in Figure 5.2 (refer page 17).

Council will be particularly concerned with the height, scale and appearance of any development propose for sites in the following locations:

(a) sites located on the fringe of the CBD and which are the "gateways" to the City and/or to adjoining residential areas;

(b) land in Main Street, in the vicinity of the Mall, where Council intends to preserve the amenity and character of the Mall; and

(c) land on exposed corner sites where setbacks from street corners would be desirable in order to reduce the obtrusive appearance of any buildings. Such locations include the corners of Flushcombe Road and Alpha Street, Alpha and Patrick Streets and Sunnyholt Road and Main Street.

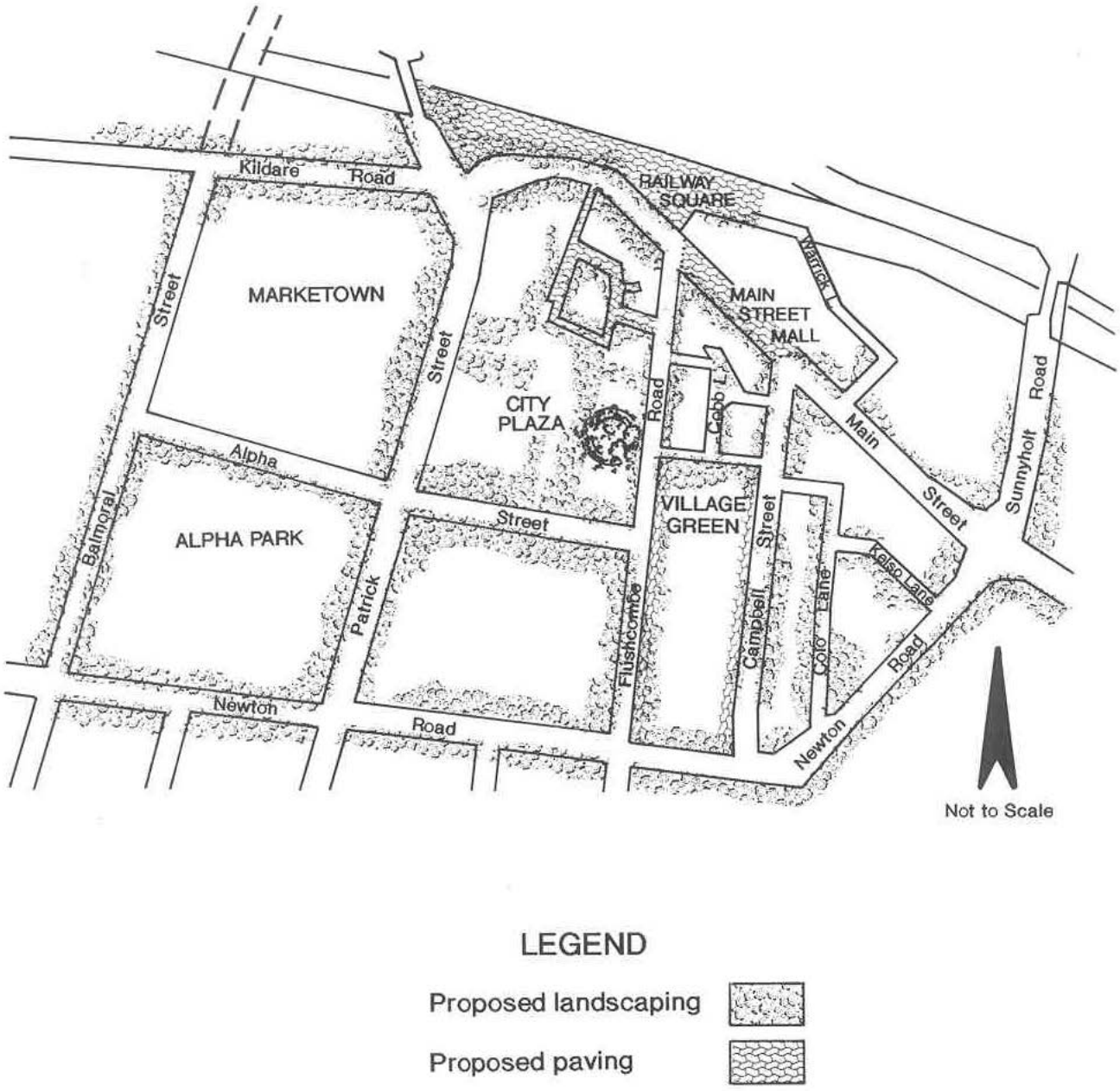


Figure 5.2
Blacktown Central Business District – Urban Design/Landscape Scheme Master Plan

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Pedestrian Access and Open Space

An objective for development within the CBD is to improve pedestrian circulation and access to open space. As a result, in considering development proposals, Council aims to protect and enhance existing open space and create a pedestrian network.

In relation to these aims Council has the following requirements:

(a) restrictions on height, location and setbacks of development so as to preserve solar access, increase the area for pedestrian movement along existing pedestrian routes and reduce "canyon effects";

(b) consideration of the relationship of one building to another in respect to the enclosure of urban spaces, in order to avoid a "canyon" appearance, undesirable wind effects and minimisation of solar access;

(c) the incorporation of an awning/covered walkway over pedestrian thoroughfares. Such structures should harmonise with similar details in adjoining developments; and

(d) the provision of the existing and preferred locations of through-site pedestrian links, as shown in Figure 5.3 below.

Any open space or open area provided as a result of development shall be accessible to the public during times approved by Council. Twenty-four hour access may be required.

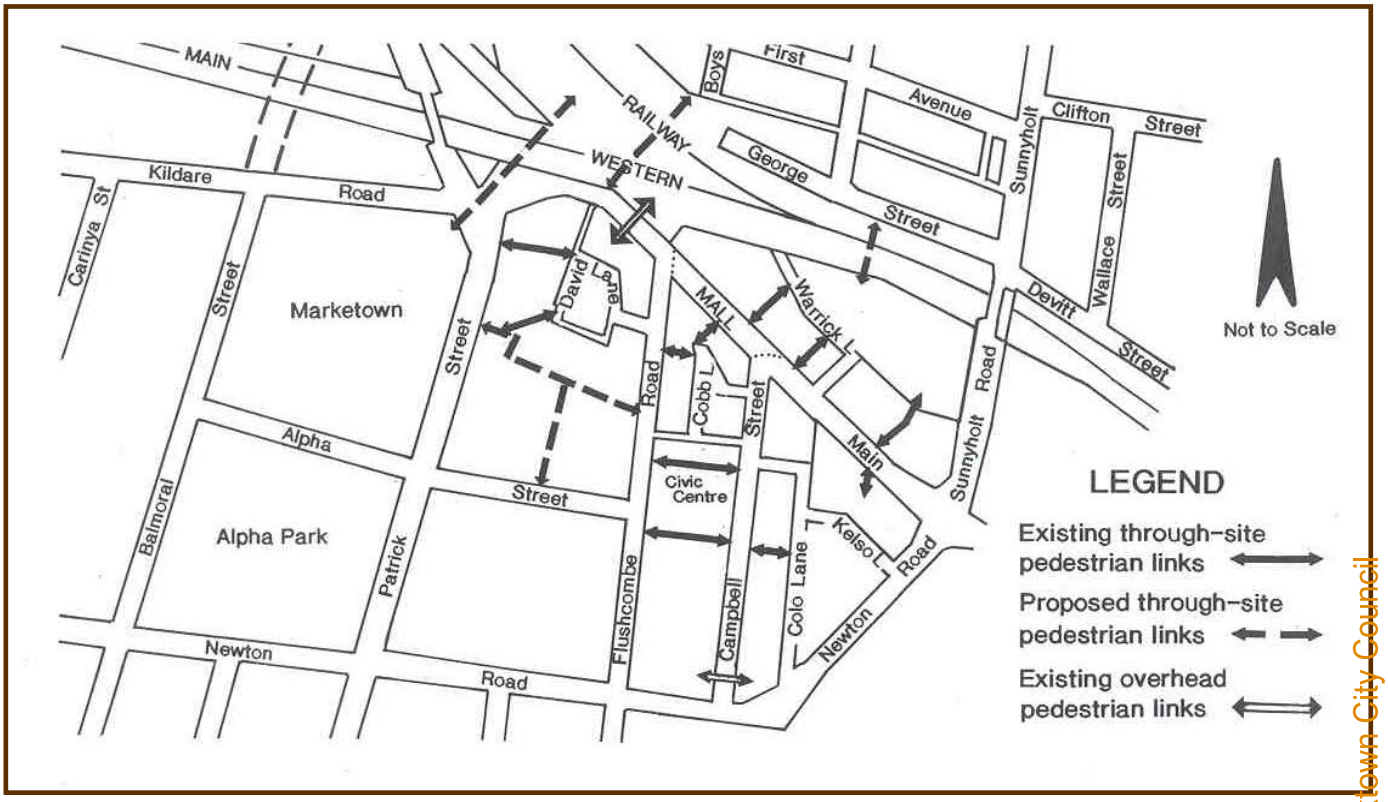


Figure 5.3
Blacktown Central Business District – Existing and Proposed Pedestrian Links

Blacktown City Council

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SUB-REGIONAL CENTRES

5.3.1 Residential/Mixed Use Development – Specific Controls

Residential development is permitted with consent in the 3(a) and 3(b) Business zones in conjunction with retail/commercial development. In **addition to** the other requirements detailed in sections 4 and 5 of this Part of the DCP, all Development Applications that propose a residential component are required to comply with the provisions of this sub-section.

The Objectives of these provisions are to:

(1) Provide a pleasant living and working environment for the residents of the building.
(2) Ensure that development sites have sufficient frontage to achieve a good relationship to adjoining sites.
(3) Ensure that the siting of buildings provides for adequate separation between buildings for the amenity of the development and adjoining properties to provide equitable access for sunlight and to minimise the overshadowing of adjoining properties.
(4) Ensure developments promote a positive relationship and 'human scale' with the public domain and maintain solar access to public places and footpaths.
(5) Maintain the amenity of any adjoining residential land in terms of building bulk and solar access.
(6) Provide attractive, usable and accessible landscaped areas of open space for the residents of the development.
(7) Minimise the overlooking of living spaces in dwellings and private open space.
(8) Ensure the adequate provision of service facilities in the development and that such facilities are integrated with the design of the development and are conveniently located for use by residents.

Requirements

Height

Northern Precinct

The Northern Precinct of the Blacktown CBD is that part of the City to the north of the railway line bounded by the Main Western Railway line, Sunnyholt Road and Third Avenue. See Figure 5.3.1a (refer page 20)

In order to achieve a transition in the height of development within the Precinct so that lower height development occurs along the Precinct's fringe (in proximity to the lower density zones adjacent to the CBD) and higher building forms occur closer to the centre of the CBD, the following provisions apply:

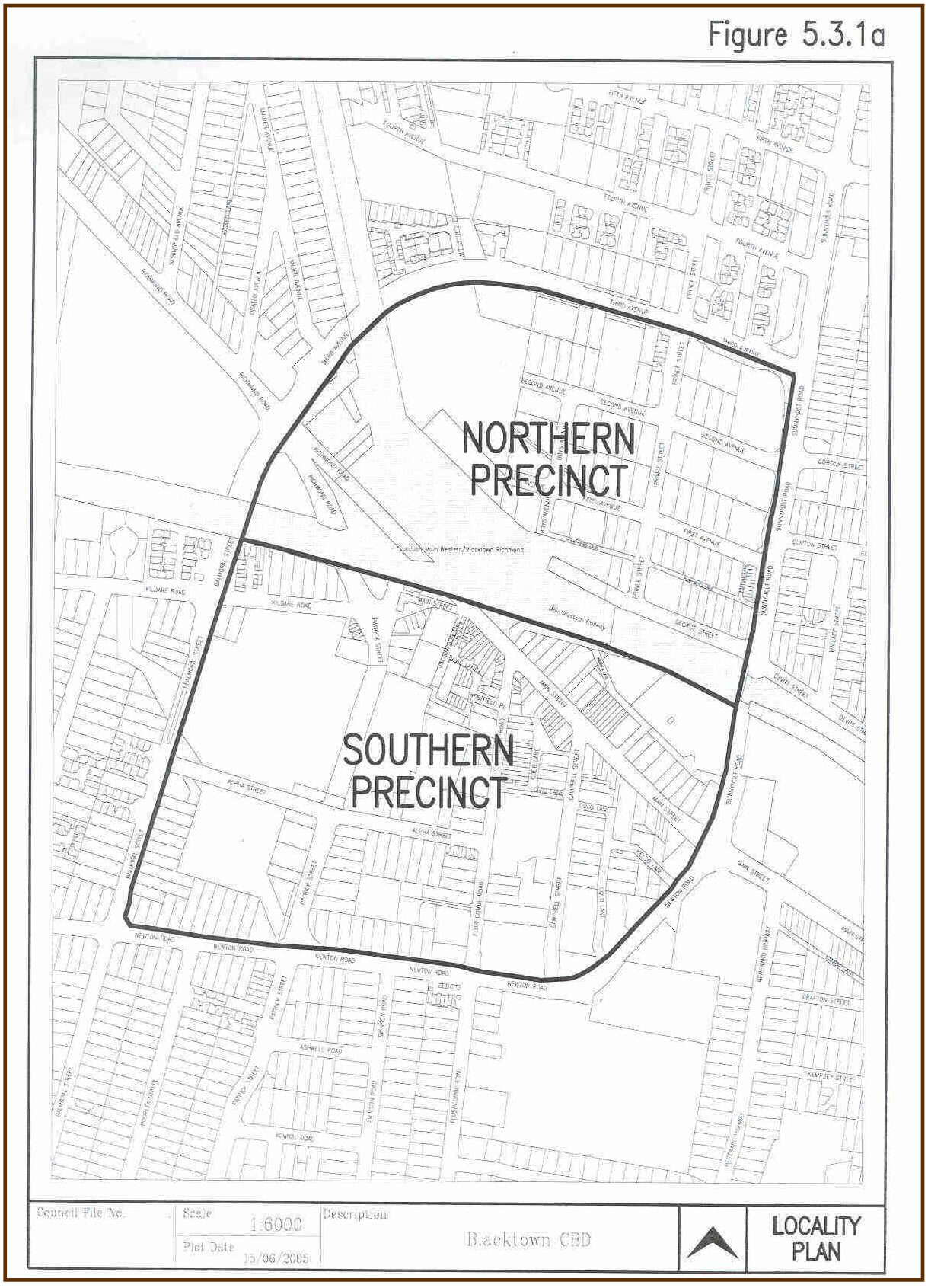


Figure 5.3.1a
Locality Plan

In the *3(b) Special Business* zone:

- For land directly fronting onto the southern side of Third Avenue - maximum of 10 storeys.

- For land on the northern and southern side of Second Avenue - maximum of 20 storeys.

In the *3(a) General Business* zone:

For land on the northern side of First Avenue and all relevantly zoned land to the south down to the railway line - more than 20 storeys is permissible.

Southern Precinct

The Southern Precinct of the Blacktown CBD is that part of the City to the south of the railway line bounded by the Main Western Railway line, Sunnyholt Road, Newton Road and Balmoral Street. See Figure 5.3.1a (refer page 20)

Generally, mixed-use developments within this Precinct will be determined on their merits having regard to issues such as the size of the site, the local context and potential impacts on the Main Street Area (particularly overshadowing and bulk and scale). Proposals will also be required to have regard to the principles shown on Figure 6.12.2, 'Building Height' of the Blacktown City Centre Urban Design Master Plan. See Figure 5.3.1b (refer page 22).

It should be noted that some peripheral sites, such as key gateway sites into the City Centre, will justify higher building forms.

Building Quality and Design

The design of buildings is to have regard to the provisions of *State Environmental Planning Policy No. 65* – Design Quality of Residential Flat Development, in particular Principles 1 – 10, and the provisions of the Residential Flat Design Code.

When viewed from nearby or distant vantage points, new development should provide visual interest through architectural design elements, including material selection, finishes and colour and should complement and enhance existing streetscapes. *Blank facades should be avoided where possible and where unavoidable should be articulated in some way.*

Additionally, the built form of new development should be designed to be of a scale which is sensitive to pedestrian activity and which provides a safe and user friendly environment. It should complement the character of the area and create good pedestrian environments and an attractive streetscape.

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SUB-REGIONAL CENTRES

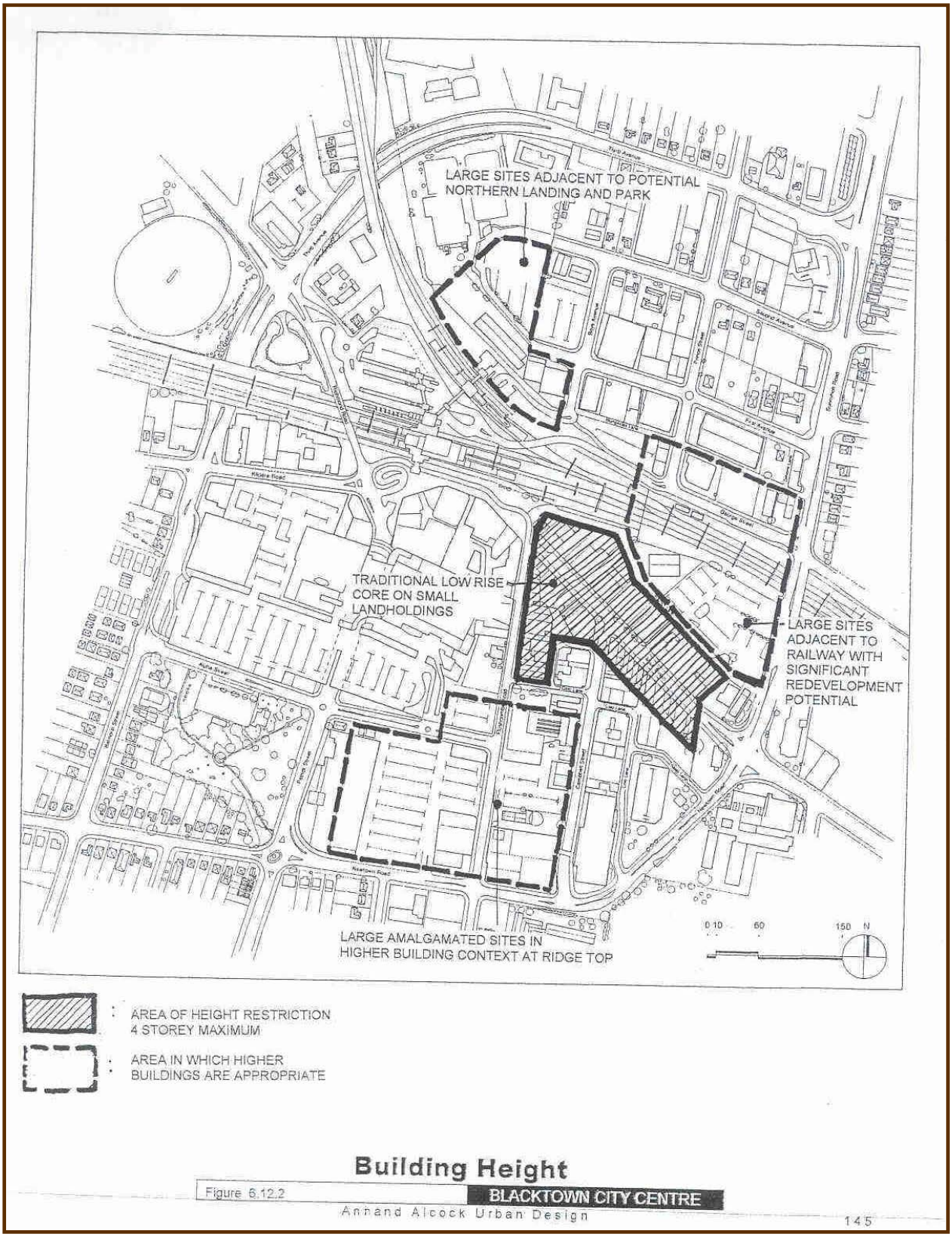


Figure 5.3.1b
Building Height

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Front Setbacks

A zero setback to the front boundary is permissible for the ground floor and the 1 - 2 levels above, i.e. the podium.

However, levels above the podium should be setback in order to create a comfortable street scale, reduce building bulk and provide greater solar access. Courtyards and balconies may encroach into the setback area to a sufficient extent to allow articulation of the facade.

In accordance with the recommendations of the Master Plan, buildings will be required to provide weather protection for and improve the amenity of pedestrians by the provision of an awning for the full frontage of the site.

Side and Rear Setbacks

A zero setback to the side and rear boundaries is permitted for the ground floor and the 1 - 2 levels above, i.e. the podium.

For the levels of the building above the podium, each development site shall be examined on its individual merits with the absolute minimum setback being 6 metres. However, in order to ensure a quality environment, especially in regard to solar access and privacy for the future residents of the CBD, setbacks greater than 6 metres are highly desirable and are advocated by Council.

Balcony encroachments into any building setback area which is not to a street frontage will not necessarily be accepted but will be assessed on their merits. In this respect, Council will have regard to matters such as privacy, overviewing and articulation of the façade.

Minimum Allotment Size or Width of Sites

The minimum site width at the street shall be 30m. Notwithstanding this, development must have regard to existing, adjacent sites which could become isolated as a consequence of that development. In these instances the developer will need to demonstrate how those sites not incorporated in the Development Application could be re-developed successfully on their own in compliance with the provisions of the DCP.

Common Open Space

Common Open Space for the use of all residents of the development shall be provided at the minimum rate of 42% of the sum of the following:

(a) 40sqm for each 1 bedroom dwelling;
(b) 50sqm for each 2 bedroom dwelling; and
(c) 70 sqm for each 3 or more bedroom dwelling.

Note:
The calculation shall be made as follows:
(40 x no. of 1 bedroom dwellings + 50 x no. of 2 bedroom dwellings + 70 x no. of 3 bedroom or more dwellings) x 42%.

A **"bedroom"** is a room designated or intended for use as a bedroom or any room capable of being adapted to be used as a separate bedroom.

Dwelling and room sizes shall comply with the requirements of the *Building Code of Australia*.

The total required Common Open Space shall not include as part of the above calculation:

(a) parking areas and vehicular accessways,

but may include communal facilities such as:

(a) gymnasiums
(b) swimming pools
(c) common rooms, community facilities and the like.

Additionally, there is no objection to roof space in the CBD being used as part of the Common Open Space subject to appropriate design, including landscaping, shade structures etc.

In order to provide usable open space for individual dwellings, the area of balconies or terraces may be included as part of the required Common Open Space provision. However, no more than 30% of the above-ground open space (balconies or terrace areas) may be included in the total.

Private Open Space

In order to ensure an adequate level of amenity and usefulness to residents, each unit is to be provided with a private balcony/courtyard or terrace area with minimum dimensions of 3m x 2.5m.

Natural Cross Ventilation and Solar Access

Developments will be required to comply with the provisions of SEPP 65 and the *Residential Flat Design Code* in regard to cross ventilation and solar access.

Lifts

All development will be required to be serviced by stretcher sized lifts.

Site Waste Management and Minimisation

Developments will be required to comply with the provisions of Blacktown Development Control Plan 1992 Part O – "*Site Waste Management and Minimisation*" in regard to minimisation of waste generated and disposed of during the construction and demolition phase of the development, maximising reuse and recycling of building and construction materials, household generated waste and industrial and industrial/commercial waste.

Design of Waste Facilities and On-going Management Practices

Details of the proposed waste management system to be implemented as part of the ongoing use of the development are to be provided to Council for assessment. While a number of alternative solutions are available (and will be considered by Council) to service the waste requirements of mixed-use

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developments, the following points will guide you to an understanding of Council's requirements.
The waste (garbage & recycling) requirements of the residential and the commercial portions of the development must be considered separately. The waste management infrastructure and collection systems used by the residential and the commercial portions of the development must be independent of each other and physically separated. Commercial tenants in mixed development should be actively discouraged from using the residential waste facilities.

The plans and accompanying documents (including the Waste Management Plan) should include details of:

(1) Bin type, number, size.

(2) Location and design of waste storage areas / rooms (residential and commercial).

(3) Method and frequency of collection.

(4) Garbage chutes (to be considered for all buildings over 4 storeys).

(5) Where garbage chutes are provided, recycling storage areas are to be provided on each floor.

(6) Compaction equipment (if proposed).

(7) Location of collection points for bin servicing.

(8) Responsibility for movement of bins from storage areas to collection points and retrieval after collection.

(9) Responsibility for ensuring the system is maintained in a clean condition free of odour and vermin.

(10) Details on how contamination of the recyclables will be minimised.

The waste management system (including location of storage areas, bin rooms, chutes etc) should be designed and located to minimise aesthetic, odour and noise impacts on residents.

Residential Requirements

Council's standard waste services include:

(1) Garbage collected weekly in 240L mobile garbage bins. The use of $1.5m^3$, $3m^3$ and $4.5m^3$ bulk bins is allowed in consultation with Council's Waste Management Services staff.

(2) Co-mingled recycling collected fortnightly in 240L mobile garbage bins.

(3) Mobile garbage bins are collected at the street kerb, and 1 lineal meter should be allowed for the presentation and collection of bins. Where large numbers of bins are involved, streetscape and the visual amenity of the area should be considered in determining the type of system to be used.

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(4) Council may consider entering private property to service bins.

Should the development require that Council's or its contractor's vehicles be required to enter the property for the purpose of gaining access to garbage or recycling containers:

(a) Roads, driveways, loading docks and footpath kerb crossings or other areas accessed for waste and recycling servicing must be designed and constructed to the standard required for a 11m large rigid truck with a turning circle of 25m to withstand a load of 25.5 tonnes to accommodate garbage trucks.

(b) Trucks must enter and exit the site in a forward direction.

(c) An indemnity must be provided releasing and indemnifying Council and/or their contractors for any damage to land or improvements on the land that may occur as a result of collecting waste and recycling from the property. This will need to undertaken by way of a bylaw in the strata management statement and Section 88B notation.

(5) Mobile garbage bins are serviced by Council using a truck with a left hand side lift. The travel height of the truck is 3.6m with 4m clearance required for bin lifts.

(6) Bulk bins are serviced by Council using a front lift truck. The travel height of the truck is 3.8m with 6m clearance required for bin lifts.

(7) When calculating the volume required for the waste and recycling requirement for the **residential** portion of the development:

(a) For developments with 1 - 8 dwellings provide 1x 240L MGB per unit (collected weekly) for garbage and 1x 240L MGB per unit (collected fortnightly) for recycling.

(b) For development with over 8 dwellings allow a minimum of 110L per unit (collected weekly) for garbage and 90L per unit (collected fortnightly) for recycling.

Commercial Requirements

The commercial tenants must have a dedicated area/room for the storage of waste (garbage and recycling). Adequate area must be provided to store waste and recycling bins meet the generation needs of "the anticipated" commercial tenants.

Council may consider servicing the garbage requirements of the commercial tenants, depending on the waste management system proposed and its compatibility with Council's standard service.

Development Consents

All development consents issued for mixed-use development in the Blacktown CBD, i.e. development to which this sub-section applies, will be valid for a period of only 2 years from the date of issue of the consent.

5.4 Blacktown Central Business District – Detailed Precinct Plans

To control and guide development in the Blacktown CBD, specific design guidelines have been formulated and are applicable for development within various precincts within the CBD. These precincts are designated in Figure 5.4 below.

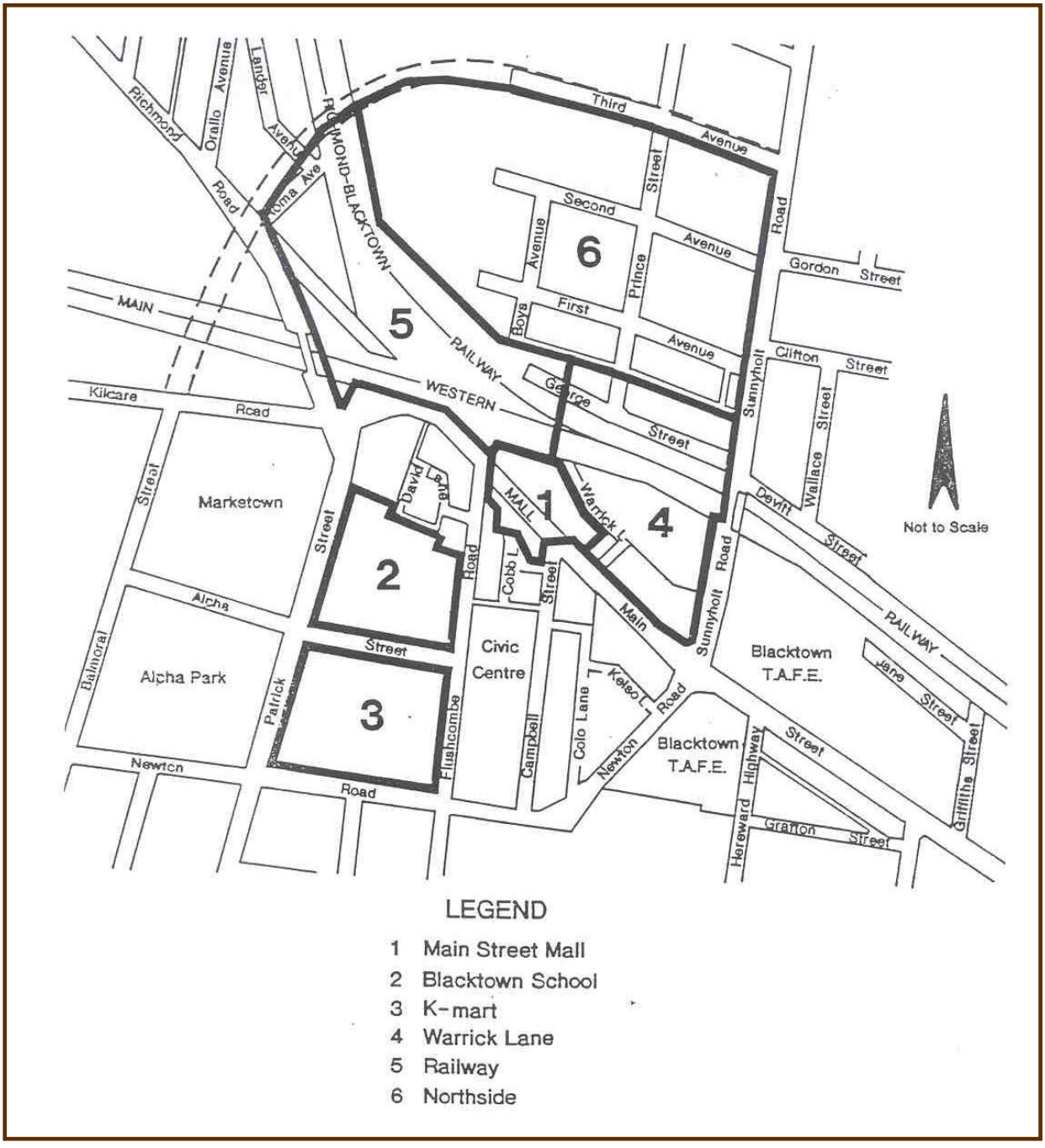


Figure 5.4
Blacktown Central Business District – Development Precincts

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5.4.1 Precinct 1 – Main Street Mall Precinct

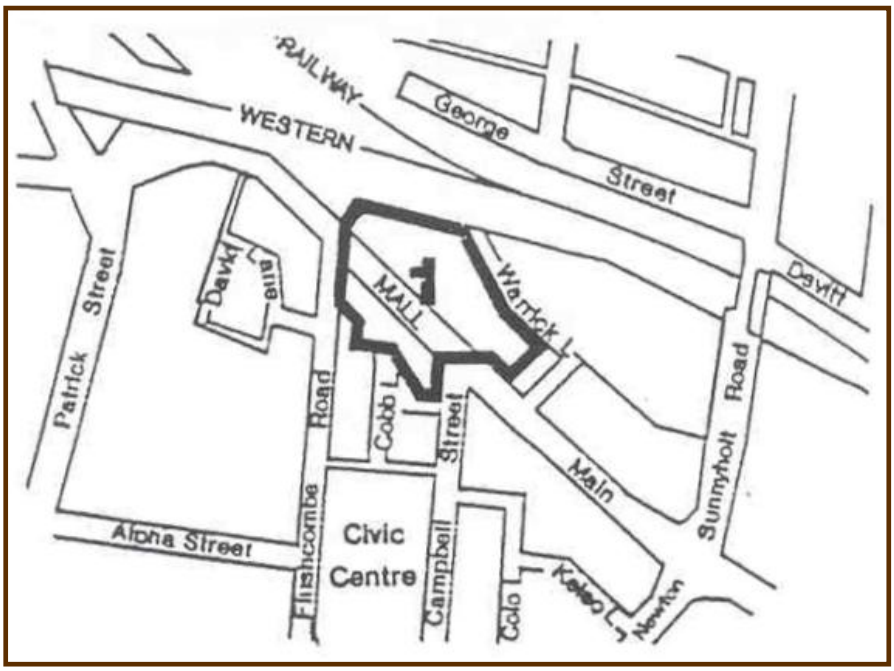


Figure 5.5: Precinct 1 – Main Street Mall Precinct

To ensure that the desired amenity of the Main Street Pedestrian Mall (located between Flushcombe Road and Campbell Street) is achieved, all development proposed for this precinct must conform to the following special requirements.

Solar Access

In order to encourage public use of the Mall area it is essential to maximise solar access for public comfort in the Mall.

The design of a building adjoining the northern boundary of the Mall shall be designed so that the shadows cast by the building at 12 noon on 21 June do not extend past a line 8m from the southern boundary of the Mall. This will result in over half the width of the Mall being in full sunshine at 1pm.

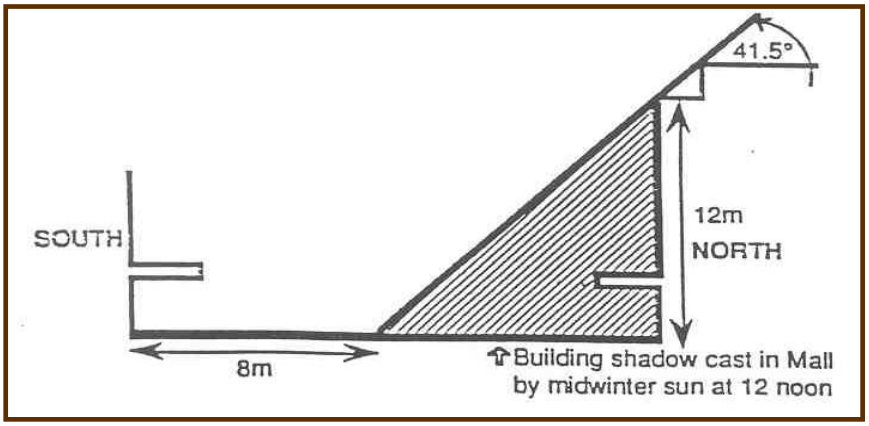


Figure 5.6
Solar Access Controls for the Main Street Mall

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As an example, this solar access control generally permits a building to be erected up to a height of 12m abutting the northern Mall boundary, with building setbacks required above this height within an angle of 41.5 degrees. However, this building height plane may vary depending upon building and slope orientation. This concept is illustrated below.

Any proposed development to the north of the Mall, but without direct frontage to this area, will be assessed in relation to its shadow on the Mall.

Scale of Development

Council may impose building setbacks or height restrictions so as to reduce the scale of the development if considered necessary. In this regard such restrictions are intended to prevent a "tunnel" of "canyon" effect from occurring and ensure that a "human" scale is maintained.

Pedestrian Areas and Open Space

Variations in the building line of facades is desirable in order to improve the amenity of the Mall by enlarging the open space area available.

Existing through-site pedestrian links fronting the Mall, which are identified in Figure 5.3 on page 18, are to be retained in the event of redevelopment where they form an important link between the Mall, parking areas and other retail/commercial destinations in the CBD.

Pedestrian areas are to meet the design objective of an integrated landscape theme for the CBD. Pedestrian pavements should be similar in style and colour to the Main Street Mall.

Landscaping

Details of all proposed landscaping and proposed hard paved areas shall be submitted to Council for approval with the Development Application and shall be consistent with Council's landscaping programme for the Mall. In this regard Council will advise of the suitability of paving and landscaping treatments.

Vehicular Access and Parking

Council may permit only minimal car parking to be provided on-site for development within this precinct. Loading facilities and possibly courier or service vehicle car spaces may be required by Council depending upon the scale and location of the development proposed. Rear lane access is to be utilised for development fronting Main Street, wherever possible.

Advertising Signs

All signs should be sympathetic with the Mall's streetscape. Signs should be:

(a) located below awning/first floor level as visibility above the first floor may be restricted by landscaping and associated structures erected in the Mall; and

(b) in accordance with Council's standard format. Further information on this matter can be obtained from Council's Planning and Development Services staff.

5.4.2 Precinct 2 – Blacktown School Precinct

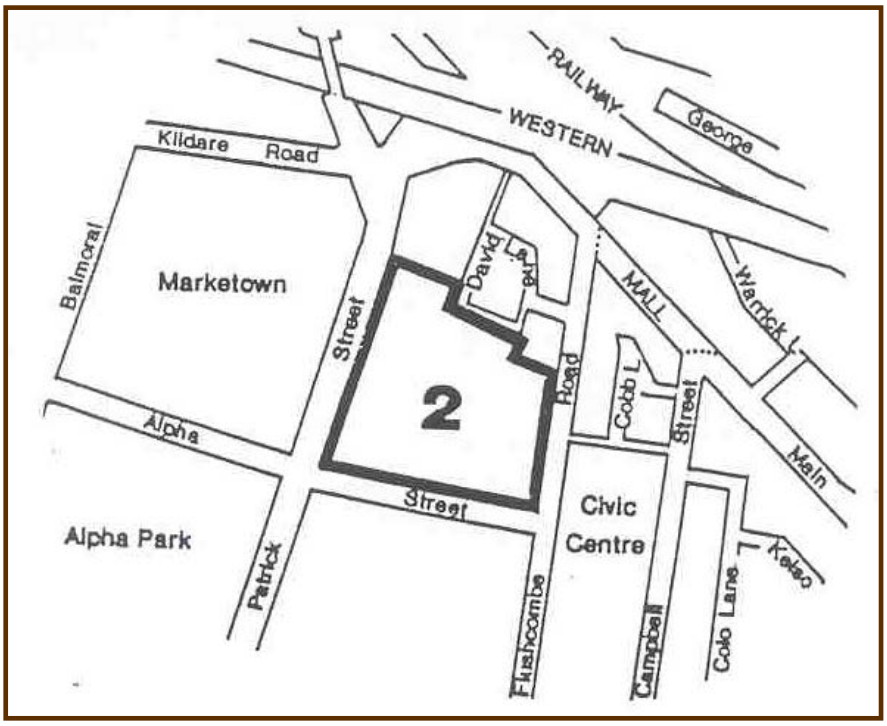


Figure 5.7 Precinct 2 – Blacktown School Precinct

This precinct comprises land bounded by Patrick Street, Alpha Street, Flushcombe Road and David Lane. It includes the Telecom site, the Blacktown Public School site and the existing retail developments known as Patrick Mall and Central Plaza. These large, relatively under-developed sites comprise the geographical centre of the CBD and are, at present, a barrier to pedestrian movement between the retail/commercial nodes of the Centre. Any redevelopment of this precinct should:

(a) provide an accessible and usable City Plaza located on the Blacktown Public School site;

(b) provide major through-site pedestrian links;

(c) retain all significant stands of trees; and

(d) retain the original school building on the Blacktown Public School site, it being listed in Schedule 2 of Blacktown LEP 1988 as an "item of the environmental heritage".

More specifically, development in this precinct must comply with the following requirements.

City Plaza

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The Urban Design/Landscaping Scheme has identified that a City Plaza fronting Flushcombe Road shall be the focus of development on the Blacktown Public School site, due to its central location and existing undeveloped, open character.

The Plaza should visually extend across Flushcombe Road to include the "Village Green" adjoining the Civic Centre. The City Plaza shall generally be of the size indicated on the Development Consent Plan for the Telecom and Public School sites (refer to Figure 5.8 on page 33). It shall be designed for use for public relaxation and entertainment.

Telecom Site

The Telecom site, on the corner of Alpha and Flushcombe Road, may be developed as a "stand-alone" development in isolation to the Blacktown Public School site, however, such development must integrate and be in harmony with the City Plaza and the development on the adjoining site. As an example, a building with a blank wall on the development side facing the City Plaza would not be appropriate.

Historical School Building

The historical school building on the Public School site is to be retained and reused for a suitable purpose, such as a café or restaurant. The incorporation of this building and its use into the City Plaza is required.

Design of Buildings

The design of any building within this precinct should be sympathetic to the City Plaza in terms of scale, bulk, height, solar access and wind effects. Buildings should be orientated towards the City Plaza but should also have interesting and complementary facades to any street frontage. Buildings should incorporate terracing of storeys away from the City Plaza.

Development on the site should be designed to respect and fit in with the historical school building. Development should not dominate but be sympathetic to the building's architectural character and the uses which may occur within the building.

Special attention should be given to the design and siting of any building on the Telecom site, to give strong definition and identity to this major street corner. Development on the Telecom site should incorporate a splayed building setback at the corner of Flushcombe Road and Alpha Street, to increase the area available for pedestrian movement and to open up and improve sight distance at this intersection.

The materials, colour and finish of the buildings should be chosen to complement each other and to present a fitting backdrop to the City Plaza.

Treatment of the North Side of the Public School Site

Consideration should be given to treatments to minimise the impact of the blank wall of the Post Office building facing the Public School site. Council will consider built development adjoining the Post Office building if such development is consistent with the theme of the City Plaza and assists in softening the impact of the Post Office building.

The northern side of the Public School site is overshadowed by the existing Post Office building. Landscaping in this section of the site, and plant species selection, should have regard to this overshadowing.

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Pedestrian Links

Pedestrian through-site links shall be provided connecting with Alpha Street, Flushcombe Road, Civic Lane, David Lane, Patrick Mall and Patrick Street.

Such links may take the form of footpaths, enclosed arcades and lanes. Consideration should also be given to providing pedestrian shelters in the form of canopies, awnings and verandahs.

Landscaping

This precinct will be a focal point of the Blacktown CBD. It is also intended to be a place for the public. Its significance and function should be expressed by the landscaping approach.

An appropriate landscape plan for any development within the precinct should be based on a detailed analysis of the microclimate (wind, glare and sun), likely uses, pedestrian desire lines, the design and use of the existing and proposed buildings and the architecture of the historical school building.

Tree planting should relate in scale to the surrounding buildings. Paving, structures (such as pergolas, gazebos and rotunda) and street furniture (such as seating, planters, lighting and signage) should form a theme directed towards accomplishing both aesthetic and functional objectives.

Solar Access

Buildings should be oriented, and of a bulk, height and scale, to ensure that the City Plaza benefits form maximum solar access, particularly in the winter months. Shadow diagrams indicating the extent of overshadowing on the City Plaza during both the winter and summer solstices must be submitted with any Development Application.

Vehicular Access and Parking

All vehicular access shall be preferred from Alpha Street and, as a second but less desirable option, from Patrick Street. No vehicular access will be permitted from Flushcombe Road. Council may require all parking to be provided on-site.

Development Concept Plan

The general development strategy, specific to the Public School and Telecom sites, as described above, is illustrated in the Development Concept Plan at Figure 5.8 (refer page 33). Development of this part of the precinct must generally comply with all the elements identified on this Concept Plan.

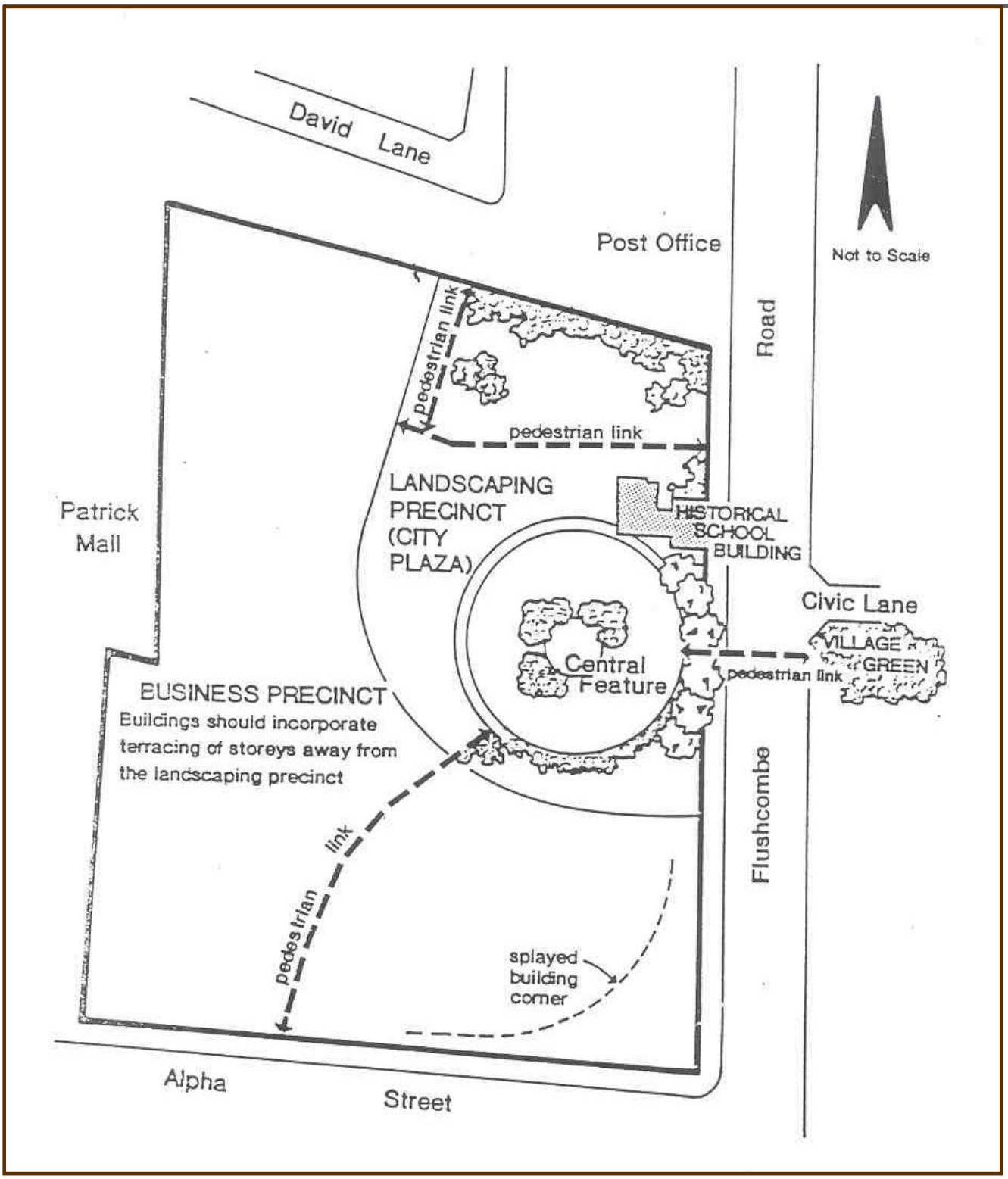


Figure 5.8
Development Concept for the Public School and Telecom Sites

5.4.3 Precinct 3 – K-Mart Precinct

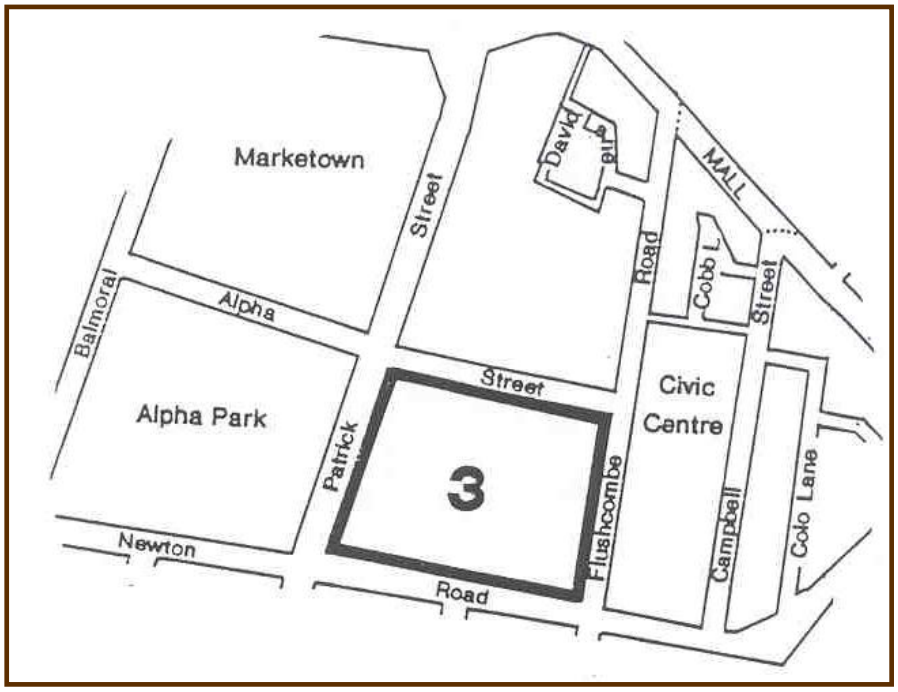


Figure 5.9 Precinct 3 – K-Mart Precinct

This precinct comprises land on the periphery of the CBD bounded by Flushcombe and Newton Roads and Alpha and Patrick Streets. At present it serves an important role as a retail/office centre and car park. Development in this precinct should comply with the following requirements.

Design

Any redevelopment of the K-mart retail centre and car park should be orientated towards the centre of the CBD, northwards to Alpha Street.

Due to the exposure of this site from all aspects, any proposed building facades should be of visual interest and be sympathetic in terms of bulk scale with adjacent residential areas. Screen planting in vacant areas and along the perimeter of the site would help achieve this aim.

Solar Access

Any redevelopment shall ensure that buildings are designed so that Alpha Park retains its existing level of soar access. In this respect shadow diagrams are to be submitted with any Development Application.

Vehicular Access and Parking

All car parking required to be provided for development within this precinct shall be accommodated on-site and advantage should be taken of the slope of the land to provide multi-deck car parking.

5

SUB-REGIONAL CENTRES

Pedestrian Areas

Major pedestrian activities should be focussed towards Alpha Street. Vehicular and pedestrian movements shall be segregated as far as possible so that vehicular access does not impede upon pedestrian routes within and between precincts in the CBD.

Landscaping

Landscaping should aim primarily to enhance the appearance of the development from the street with substantial perimeter planting.

5.4.4 Precinct 4 – Warrick Lane Precinct

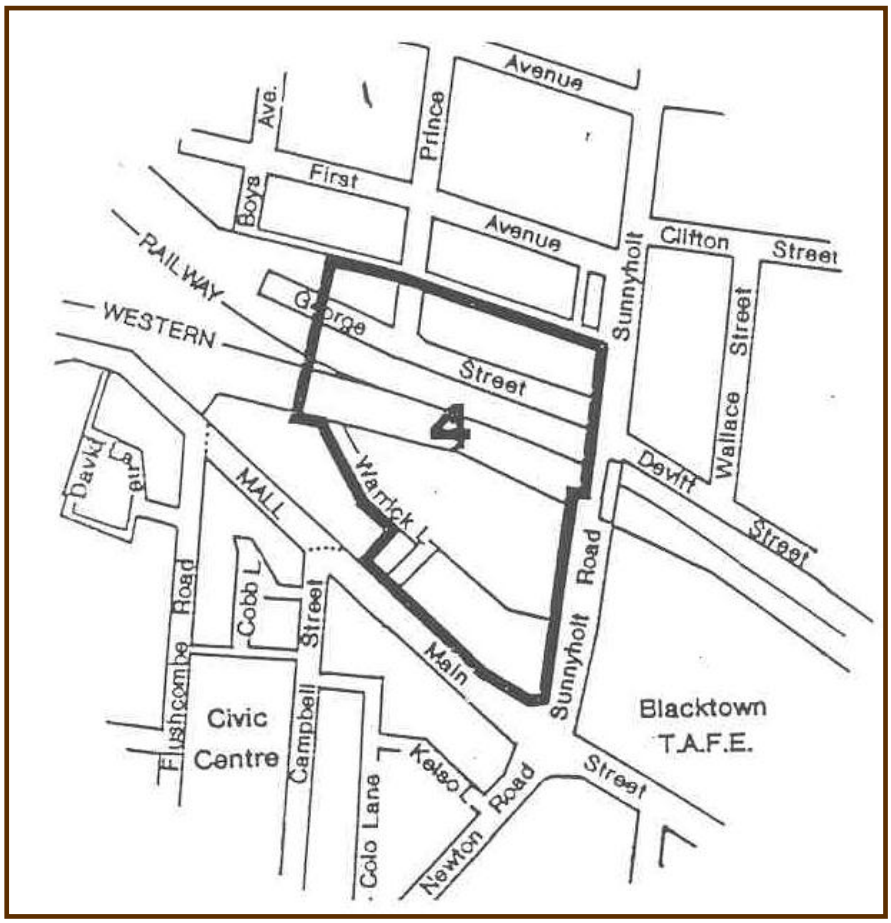


Figure 5.10 Precinct 4 – Warrick Lane Precinct

This precinct fronts Warrick Lane, the railway line and Sunnyholt Road. It is a prominent site visible from the railway and north of the City Centre. This site is of major importance as a potential commercial/retail centre in conjunction with transport interchange facilities. Development in this precinct must comply with the following requirements.

5 SUB-REGIONAL CENTRES

Pedestrian Areas

Any development should incorporate pedestrian links to the Main Street Mall, linking up with existing arcades on the northern side of the Mall. The design of any development within this precinct should provide a pedestrian link to the adjacent railway land (to the north and west) to enable future development over the railway land to integrate with this precinct.

Solar Access

Shadow diagrams are to be submitted where Council is of the opinion that any development may affect solar access within the Mall. This should be discussed with Council prior to the submission of any Development Application.

Design and Landscaping

Due to the high exposure of this site to the north and east particular attention should be given to minimising the bulk and scale of the development and designing facades with visual interest.

Landscaping and paving of pedestrian areas shall complement Council's landscaping programme for the City Centre.

Vehicular Access and Parking

All car parking required as a result of development must be accommodated on-site, in addition to the number of existing public car parking spaces on the site of the existing Warrick Lane Car Park. Warrick Lane is to remain open for limited rear vehicular access for properties fronting Main Street.

5.4.5 Precinct 5 – Railway Precinct

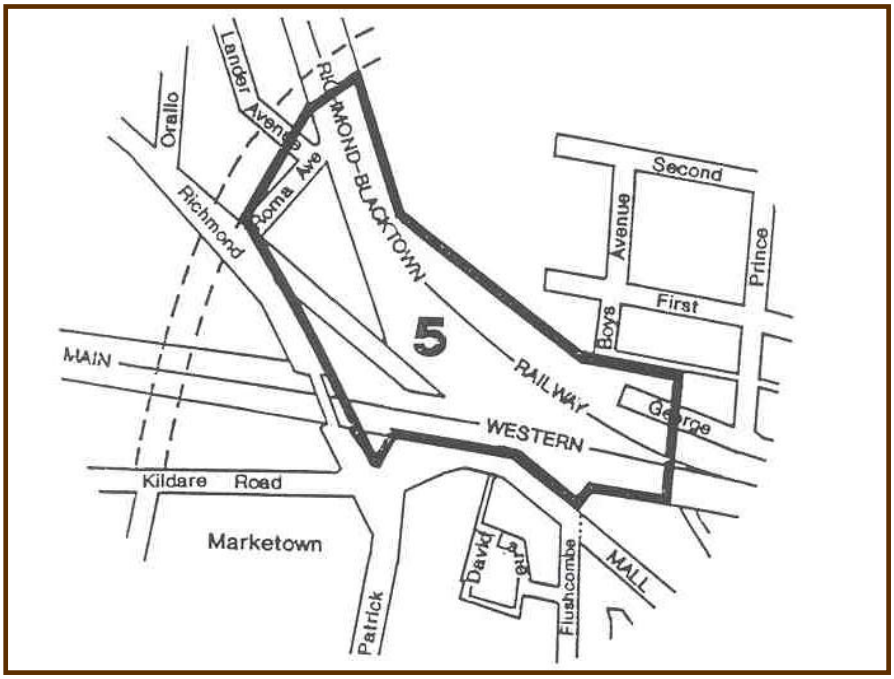


Figure 5.11 Precinct 5 – Railway Precinct

Blacktown City Council

5

SUB-REGIONAL CENTRES

This precinct comprises land zoned for railway purposes and is generally bounded by Roma Avenue, Precinct 4 and Main Street. The site has redevelopment potential in terms of development of the air space over the railway line.

This precinct is of major importance in terms of providing pedestrian links between the existing retail/commercial development of the CBD and future development on land to the north of the railway line.

Design

As the site is the main arrival and departure point in the CBD for shoppers and commuters, substantial public facilities need to be provided as part of any development, including:

(a) eating facilities, such as restaurants and kiosks;

(b) public toilets and baby feed and change rooms;

(c) open public areas for rest and relaxation; and

(d) a community information centre.

Given the exposure and size of this precinct and its visual prominence, any development should be of pleasing architectural appearance from all elevations.

Pedestrian Areas and Open Space

Any development should incorporate through-site pedestrian routes, linking the northern and southern sides of the railway line. These routes should link with Main Street, Flushcombe Road, the Warrick Lane Precinct, David Lane and the Marketown Shopping Centre.

Solar Access

Shadow diagrams are to submitted which illustrate the effect of any proposed development on neighbouring land. This should be discussed with Council's Planning and Development Service staff prior to preparation of any Development Application. Solar access must be maintained to Railway Square to Council's satisfaction.

Vehicular Access and Parking

Council may require all car parking generated by development within this precinct to be provided on-site, with designated parking areas for commuters, shoppers and Centre workers.

Council will require all vehicular access to the site to be restricted to the northern side of the Main Western Railway Line only, via George Street and Richmond Road. Warrick Lane is to remain open for limited rear vehicular access for properties fronting Main Street.

5

SUB-REGIONAL CENTRES

5.4.6 Precinct 6 – Northside Precinct

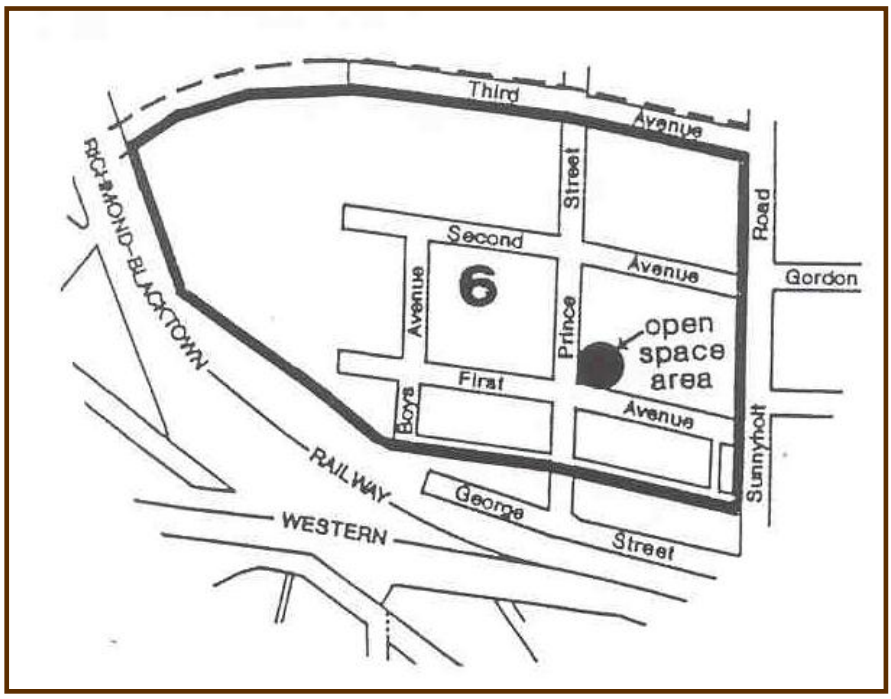


Figure 5.12 Precinct 6 – Northside Precinct

This precinct comprises all land on the northern side of the railway line, north of the laneway between First Avenue and George Street and up to the Third Avenue inner ring road (being the northern boundary of the Blacktown CBD). It incorporates underdeveloped 3(a) and 3(b) zoned land, a 6(a) Public Recreation area, the Blacktown RSL Club site and commuter parking areas.

As detailed in section 2 of this Part of the DCP, the purpose of the 3(b) Special Business zone, located on the northern outskirts of the CBD, is to cater for the expansion of the Centre by providing land for support development. This zone is designated to accommodate uses such as commercial offices, light industrial activities and business support services.

This precinct is regarded as the logical future extension of the CBD, retained within the boundaries of the inner ring road. The precinct is physically isolated from the bulk of the CBD by the railway line, hence the incorporation in any development of functional pedestrian and visual links with the established CBD area is important. Any future development of the precinct should therefore give particular emphasis to:

(a) the provision of pedestrian links within the precinct and with the established CBD area to the south;

(b) the landscaping and paving of pedestrian areas and open space complementary to the established CBD area;

(c) the long-term need for public transport and commuter parking facilities; and

(d) the provision of adequate vehicular access and on-site parking to cater for each development's general needs and to avoid conflict with commuter parking needs.

To give effect to the abovementioned objectives and development strategy, proposed development within this precinct must comply with the following requirements.

Development in the Vicinity of the 6(a) Public Recreation Zone

The centrally located open space area will be a significant focal point for public relaxation and visual relief within the precinct. In order to enhance the public utilisation and amenity of this area and ensure that solar access is maintained, the design of any building located on the eastern and northern boundaries of the 6(a) Public Recreation area in First Avenue shall:

(a) have a landscaped 3m setback from the 6(a) zone boundary. Buildings over 12m in height shall have terraced storeys or an additional setback as determined by Council, in order to ensure that a "human scale" is maintained by reducing the scale of the development, its visual impact and any canyoning or wind effects;

(b) be designed so that shadows cast by the proposed development between 11am and 3pm on 21 June ensure that 50% of the open space area is in full sunshine;

(c) provide an interesting facade to the open space boundary. Blank wall facades will not be permitted. Developers are encouraged to utilise the advantages of the adjacent open space area in their building design; and

(d) provide pedestrian links from the development and between developments for public access to the open space.

All proposed development within this precinct without direct frontage to the open space shall be assessed for their shadowing and visual amenity impacts on this area.

Visual Amenity

Pedestrian areas must be landscaped to complement Council's CBD landscaping programme.

A 3m landscaped front setback shall be provided on all developments along Sunnyholt Road.

Buildings located along the southern boundary laneway and the railway line should ensure an interesting southern facade to the adjacent Railway and Warrick Lane Precincts upon which pedestrian links will focus.

Vehicular Access and Parking

Due to the anticipated large traffic volumes along the Third Avenue inner ring road and Sunnyholt Road and increasing commuter parking in this precinct:

5

SUB-REGIONAL CENTRES

(a) no access shall be permitted from proposed developments to Sunnyholt Road;

(b) service road access only shall be permitted from developments to Third Avenue and shall be constructed and dedicated at no cost to Council; and

(c) all developments within the precinct must provide all car parking on-site.

5.5 Mount Druitt Town Centre

The Mount Druitt Town Centre is also a sub-regional centre, although secondary to the Blacktown CBD.

Approximately half the land within the Town Centre is still available for commercial and/or retail development. Any new development in the Centre should relate in function to the existing uses within the Centre.

Intending developers should discuss their proposals with Council prior to finalising their plans.

5

SUB-REGIONAL CENTRES

6.0 DISTRICT CENTRES

6 DISTRICT CENTRES

6.1 Description

The 2 existing district centres in the City of Blacktown are the Seven Hills and Plumpton shopping centres. Three additional district centres are proposed at Quakers Hill, Riverstone and Parklea to serve the needs of the future residents of surrounding urban release areas.

The district centres primarily serve a retail function, providing shopping facilities at a level suitable for the weekly shopping needs of residents in the surrounding area. They contain or will contain at least a large supermarket with perhaps a discount department store or another smaller supermarket. District centres provide a medium range of specialty stores and support services (financial institutions, hair dressers, dry cleaners etc) as well as community facilities.

The district centres will, in general, range in size from approximately 15 000 to 30 000 sq.m gross floor area at full development.

6.2 Seven Hills Centre

Significant potential for redevelopment exists in the business zone on the eastern side of Prospect Highway. In the event of new development or redevelopment, the general guidelines in this Part of the Blacktown Development Control Plan (DCP) 2006 should be followed, with particular emphasis on implementing landscaping improvements for the Centre and creating a common theme or link between the land on the eastern and western sides of Seven Hills Road South.

Prospect Highway is an arterial road under Blacktown Local environmental Plan (LEP) 1988 and, as such, direct vehicular access is denied from properties fronting this road unless alternative access is not available. All car parking required by development must be provided on site.

6.3 Plumpton Centre

Potential exists within the Plumpton district centre to increase retail floorspace commensurate with residential growth in the locality. Where new development is proposed, the general guidelines in this Part of the DCP should be followed, with particular emphasis on integration of built form with the design of the existing centre.

6.4 Proposed District Centres

There are three proposed district centres within the City. The expanded centres at Quakers Hill and Riverstone and the proposed centre at Parklea are intended to provide a comprehensive range of facilities, activities and services appropriate for the retail, commercial, community, entertainment and recreation needs of the future residents of these new areas.

In considering development proposals for these 3 centres Council will take into account their role in the hierarchy of business centres and the principles and standards outlined in section 4 of this Part of the DCP. Particular emphasis will be placed on the creation of efficient pedestrian and vehicular access. A 3m wide landscaped buffer to adjoining residential properties or residentially zoned land will be required.

7.0 NEIGHBOURHOOD CENTRES

7

NEIGHBOURHOOD CENTRES

7.1 Description

The majority of existing and proposed business centres in the City of Blacktown are designated as neighbourhood centres - being centres which serve local shopping needs and provide professional services required for the immediately surrounding residential population.

There are 2 different levels of neighbourhood centre.

7.1.1 Large Neighbourhood Centres

These centres comprise Rooty Hill, Emerton, Woodcroft and Kings Langley, and as well as providing daily shopping facilities by way of small shops (such as butchers, greengrocers, chemists, newsagents etc), also have a medium scale supermarket. They sometimes will also have banks and a post office and provide professional services. Large local centres range in size from approximately 5 000 sq.m to 15 000 sq.m gross floor area.

7.1.2 Small Neighbourhood Centres

These centres consist of a small supermarket and restricted range of speciality small shops (such as butchers, greengrocers, chemists, newsagents, mixed businesses etc) along with, perhaps, a dry cleaner, post office and bank agencies. In some cases, professional services or take-away food shops are also provided. These centres range in size up to 5 000 sq.m gross floor area.

7.2 Development Guidelines

Many of the existing local centres are fully developed, with little vacant business zoned land. In such centres any proposal for additions or redevelopment should ensure that landscape/streetscape improvements are implemented and bus facilities are provided where appropriate.

Retail/commercial redevelopment or extensions to existing local centres will be considered on their merits. However, Council will not favour increases in floor area where the centre outgrows its local function in terms of the established Blacktown retail hierarchy.

Each new centre shall be designed so that the location of buildings, car parking, landscaping, public transport and vehicular and pedestrian movements will enable the centre to function efficiently.

Co-ordinated development of new centres will be required where more than one land owner is involved. Council will consider on their merits applications to develop only part of a local centre site where it is satisfied that the development will serve identified local needs and where the Development Application is accompanied by a “Development Concept Plan” for the whole site which demonstrates the manner in which the proposed development could satisfactorily relate to future development of the remainder of the site.

All car parking shall be provided on-site for all local centres.

The "Sportsman's Hotel" site is unique as it is currently developed as a hotel and development proposals should provide local facilities only, with the capacity to develop eventually to a large local centre. Council shall not approve a development proposal for this site which would be more suitably located in the nearby Blacktown CBD. Any development should provide local facilities only.

Applicants intending to develop any of these local centres should discuss their proposals at an early stage with Council's Planning and Development Services staff.

7 NEIGHBOURHOOD CENTRES

SECTION 8 – QUAKERS HILL URBAN VILLAGE

1

PRELIMINARY

1.0 PRELIMINARY

1.1 Purpose and Aims of this Section

This section of Blacktown Development Control Plan (DCP) 2006 Part D (Development in the Business Zones) is the Quakers Hill Urban Village Guidelines. It has been prepared pursuant to the provisions of Section 72 of the *Environmental Planning & Assessment Act, 1979*.

The purpose of this section is to provide detailed controls to guide the future development of the Quakers Hill Urban Village. This section supplements the controls for the land set out in *Blacktown Local Environmental Plan 1988 (BLEP* 1988). This section is based on the *Quakers Hill Commercial Precinct Urban Planning and Design Study* (July 2005) prepared by JBA Urban Planning Consultants on behalf of Blacktown City Council.

The specific aims of this section are:

(1) To facilitate the redevelopment of the existing commercial centre into a vibrant, mixed use urban village;
(2) To provide planning and design guidelines that ensure high quality built form outcomes and an improved public domain in a manner that is sustainable and minimises impact on the local community; and
(3) To set out clear planning, design and environmental criteria against which Council will assess future Development Applications (DAs) for all new development.

1.2 Land to which this Section Applies

This section applies to all land as shown at **Figure 1**.

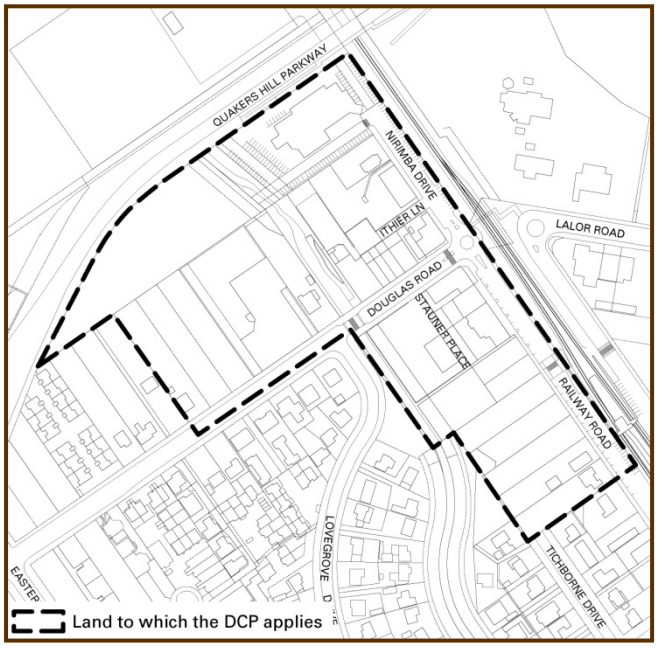


Figure 8.1
Land to which this section applies

1

PRELIMINARY

1.3 Date of Adoption for this Section

This section was adopted by Council on 19 April 2006 and came into force on 27 September 2006

1.4 How to use this Document

This section is divided into 4 sub-sections. Section 1 includes background information relating to the operation of this Part. Section 2 establishes the context, vision and urban design principles for future development. Section 3 sets out the key development outcomes that are sought for each of the three blocks covered by the controls in this section.

Section 4 sets out the detailed planning and design controls relevant to all development. It contains a series of objectives and development controls. The objectives state what the Council is seeking to achieve from future development. The development controls contained within this Part are intended to ensure that the stated objectives are met and that high quality outcomes are delivered throughout the life of any development.

Development proposals that significantly differ from the development outcomes illustrated in Section 3.0 are to be considered against the Vision and Objectives at Section 2.2 as well as the detailed design guidelines contained at Section 4.0. Development proposals that contain only non-residential land uses are to also consider the provisions contained within Blacktown DCP 2006 Part D (Development in Business Zones).

1.4.1 Definitions

Terms used in this Part are as defined in *BLEP 1988* and Blacktown DCP 2006 or as specifically defined within the body of this section.

1.4.2 Development Application Checklist

Appendix A of this section sets out a checklist of the information required to be submitted to Council as part of a DA. Applicants are encouraged to discuss their development with Council officers prior to lodging a DA. This will help to ensure that issues are resolved before the DA is lodged and that the DA contains all necessary information.

1.5 Relationship to Other Council Planning Documents

This section is to be read in conjunction with the following documents which contain controls and provisions applying to the Quakers Hill Urban Village that are additional to those set out in this section:

(1) Blacktown LEP 1988 (BLEP 1988);
(2) Blacktown Development Control Plan 2006 Part A (Introduction and General Guidelines);
(3) Path Paving Policy (January 2001);
(4) Blacktown Development Control Plan 2006 Part O (Site Waste Management and Minimisation);
(5) Blacktown Development Control Plan 2006 Part R (Water Sensitive Urban Design and Integrated Water Cycle Management);
(6) Blacktown Development Control Plan 2006 Part N (Telecommunications

Facilities);
(7) Works Specification Civil; and
(8) Engineering Guide for Developments.

In the event of any inconsistency between this section and any other Part of the DCP or policy of the Council, this section will prevail to the extent of the inconsistency.

1.6 Blacktown Local Environmental Plan 1988

The majority of the land to which this scetion applies is zoned 3(a) under BLEP 1998. The objectives of this zone are:

(a) to encourage appropriate development which will result in the growth of major foci for accommodating the retail, commercial and social needs of the community,
(b) to encourage development and expansion of business activities which will contribute to the economic growth of, and the creation of employment opportunities within, the City of Blacktown,
(c) to encourage a wide range of retail, commercial and recreational facilities in the major business centres of Blacktown,
(d) to accommodate the establishment of retail, commercial and professional services for local residents in conveniently located business centres within the residential precincts where the scale and type of business development is compatible with the amenity of the surrounding areas, and
(e) by means of development control plans:
  (i) to ensure that the size and function of both retail and commercial facilities are established within a preferred hierarchy of centres for the City of Blacktown,
  (ii) to set aside specific areas within the zone for the provision of carparking, community uses, civic facilities, recreation areas and the like, and
  (iii) to provide for a program of environmental improvements within each centre with a view towards improving traffic movement and shopper safety and comfort.

Under Clause 9 of BLEP 1988, residential uses are permissible in the 3(a) Zone, if they are undertaken in conjunction with a retail / commercial use, and with the consent of Council. All applications are required to be consistent with the objectives of BLEP 1988, the above zone objectives, the provisions of Section 79C of the *Environmental Planning & Assessment Act*, and the principles, objectives and detailed controls of this section.

1.7 State Environmental Planning Policy 65 and the Residential Flat Design Code

State Environmental Planning Policy No. 65 - Design Quality of Residential Flat Development (SEPP 65) is a mandatory consideration for all applications for residential flat buildings of 3 storeys or over. All such applications must be accompanied by a Design Verification Statement indicating how the Design Quality Principles of SEPP 65 have been achieved, together with a statement that the development has been designed by a registered architect in accordance with the SEPP 65 Regulation.

SEPP 65 also requires that the development standards and guidelines in the *Residential Flat Design Code (RFDC*) published by the Department of Planning are to be taken into consideration in the design and assessment of residential flat buildings. In assessing applications for residential flat buildings of 3 storeys or

greater, Council will have regard to those standards in the RFDC which are not covered by this section.

2.0 CONTEXT AND VISION

2.1 Context

Quakers Hill Centre is located 4km north-west of Blacktown CBD. The centre is bounded by the railway line to the east, Quakers Hill Parkway to the north, residential areas and a stormwater channel to the west and south. Surrounding the Centre is the suburb of Quakers Hill which generally comprises single dwellings with a mix of infill townhouse and villa style housing. The Nirimba Education Precinct is located within walking distance of the Centre. The precinct includes the Blacktown TAFE College and the University of Western Sydney – Blacktown Campus.

Quakers Hill is serviced by the Quakers Hill Railway Station which provides daily rail services to the Sydney CBD via Blacktown. The completion of the M7 Motorway will also enhance the accessibility of the Centre to the broader Sydney Region by road.

Quakers Hill Centre has been identified as a 'future District Centre' under Council's retail hierarchy. Development within the Centre however, has been limited. In 2004, there were approximately 40 retail shops and some 4,500m^2 of retail and commercial floor space. Approximately 50% of the Centre comprises vacant land. The achievement of District Centre status is restricted by excellent access to competing centres, and the fact the Quakers Hill Parkway bypasses the centre.

2.2 Vision and Objectives

Economic studies have indicated that Quakers Hill Centre is unlikely to achieve full District Centre status in terms of total retail and commercial floorspace. To facilitate the economic viability of the centre and to take advantage of the existing transport and community infrastructure, residential uses are encouraged within the Centre to establish a vibrant, mixed use 'urban village'. In the future, Quakers Hill should provide a range of residential, retail, commercial and community uses that will enhance this local centre. Redevelopment will also provide the opportunity for significant improvements to the public domain. Council's vision for the future Quakers Hill Urban Village is a centre which has the following attributes:

(a) a safe and convenient pedestrian environment that encourages walking to and from the village;
(b) an enhanced public domain with widened footpaths, new public spaces, street tree planting, and awnings for shelter;
(c) a mixed use centre with active uses such as retail shops, commercial offices and community uses at ground level with residential units above;
(d) a coherent building scale and form that is compatible with the scale of the surrounding area;
(e) high quality and sustainable building design that defines the public domain and provides a high level of residential amenity;
(f) an improved road and traffic network with new access ways and the implementation of traffic calming and intersection upgrades as required; and
(g) improved amenity along the stormwater channel with pathways and landscaping, play areas and long term water quality improvements through a more naturalised watercourse.

2

CONTEXT AND VISION







3.0 BLOCK BY BLOCK CONTROLS

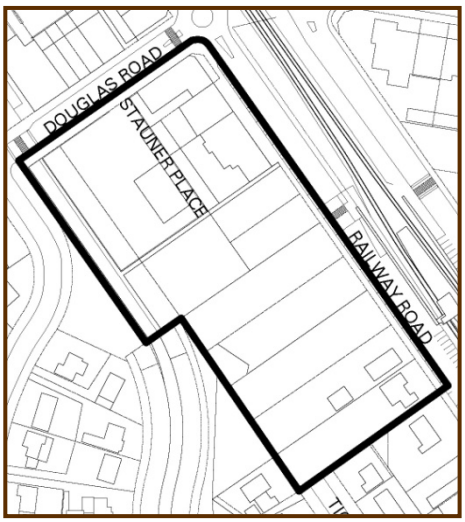
3 BLOCK BY BLOCK CONTROLS

The Quakers Hill Urban Village contains three defined blocks – the Railway Road Block, the Nirimba Drive Block and the Douglas Road Block. The following section sets out the key development outcomes that are sought for each Block. These are to be read in conjunction with the detailed design guidelines contained at Section 4.0 of this section.

The building envelopes indicated within this section of this Part of the DCP do not infer that automatic approval would be granted for the removal of significant areas of existing vegetation. Where possible existing vegetation is to be retained and each Development Application is to be accompanied by a detailed landscape plan and arborist's report.

3.1 Block 1 – Railway Road

The Railway Road Block is bounded by Railway Road, Douglas Road, the stormwater channel and residential zoned land to the south. The block contains retail shops on the corner of Railway and Douglas Roads, informal car parking areas and scattered stands of trees. The block also contains the partially formed street, Stauner Place and associated car park.



3.1.1 Development Outcomes

Development within the Railway Road Block is to facilitate the following outcomes:

(1) Ground level shops, cafes and commercial premises to activate Railway and Douglas Roads. Residential uses above provide a '24 / 7' activity within the urban village.

(2) Pedestrian amenity is enhanced through widened footpaths, street trees, awnings, and new street furniture consistent with the existing public domain improvements.

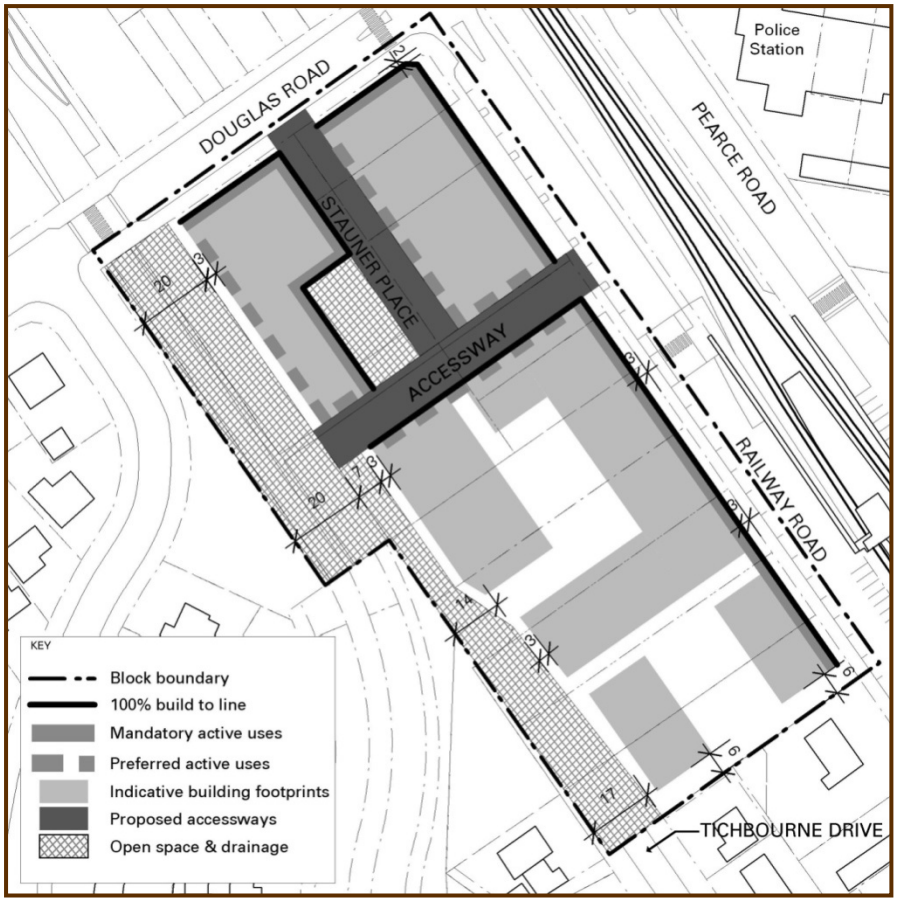
(3) Stauner Place is extended, linking Douglas Road with a new access way that links to Railway Road in accordance with **Figure 2**. The access ways provide pedestrian links through the block, additional short stay, kerb -side parking, and vehicular access to basement car parks. The Stauner Place extension is to be 'exit only' onto Douglas Road.

(4) The existing Council car park is converted into an urban square as part of the redevelopment of the adjoining site. The square is landscaped and new street furniture is provided that is consistent with the existing public domain improvements. The square is defined by retail shops and or community uses on two sides and is overlooked by residential units providing natural surveillance of the space. Short stay public car parking is to be accommodated within the new access ways.

(5) Building heights and forms are stepped to provide an appropriate transition between the residential zoned land to the south and Douglas Road, generally in accordance with **Figure 2**.

(6) Existing significant vegetation is to be retained within communal open space areas.

(7) Land along the stormwater channel is dedicated to Council for drainage and public open space in accordance with **Figure 2**. This open space is landscaped and embellished with seating and walking tracks connecting Douglas Road, the new access way and Tichborne Avenue. Such land dedication and embellishment works may be offset against Section 94 Contributions.



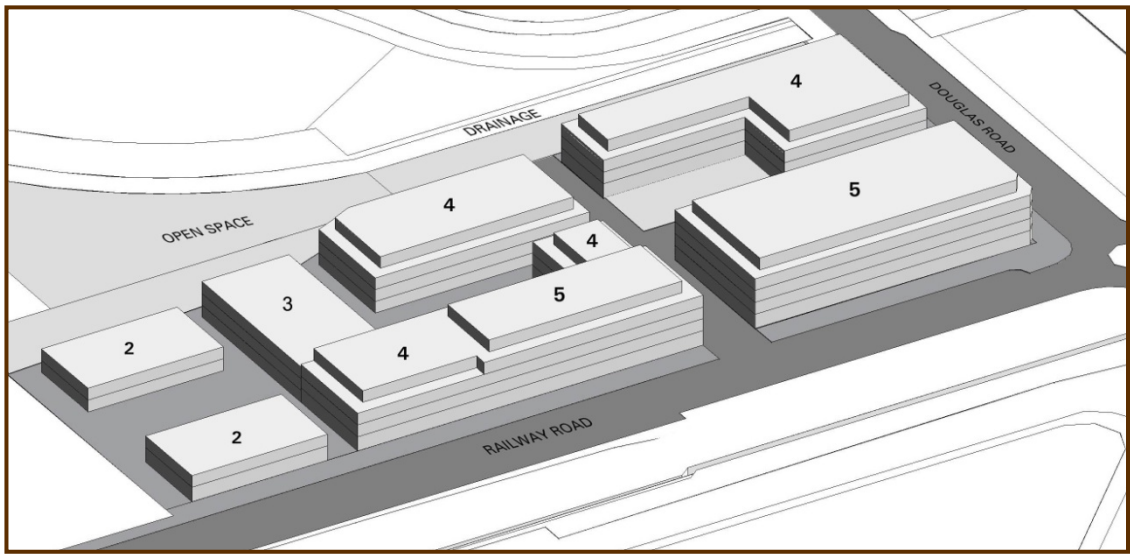


Figure 8.2
Block 1 (Railway Road)

The above image illustrates maximum building block envelopes. These are larger than the actual buildings that will be achievable under this section (refer to Section 4.2).

3.2 Block 2 – Nirimba Drive

The Nirimba Drive Block is bounded by Nirimba Drive, Douglas Road, Quakers Hill Parkway and the stormwater channel. It contains the Quakers Inn, the Telstra Exchange Building and retail shops fronting Douglas Road.

3.2.1 Development Outcomes

Development with the Nirimba Road Block is to facilitate the following outcomes:

(1) A new landscaped open space be provided adjacent to the stormwater channel at the end of Ithier Lane, generally in accordance with **Figure 3**. A pedestrian pathway be provided along the stormwater channel linking Douglas Road and the new open space. Landscaping along the stormwater channel at the rear of the Quakers Inn site is to enable ready surveillance of this area.

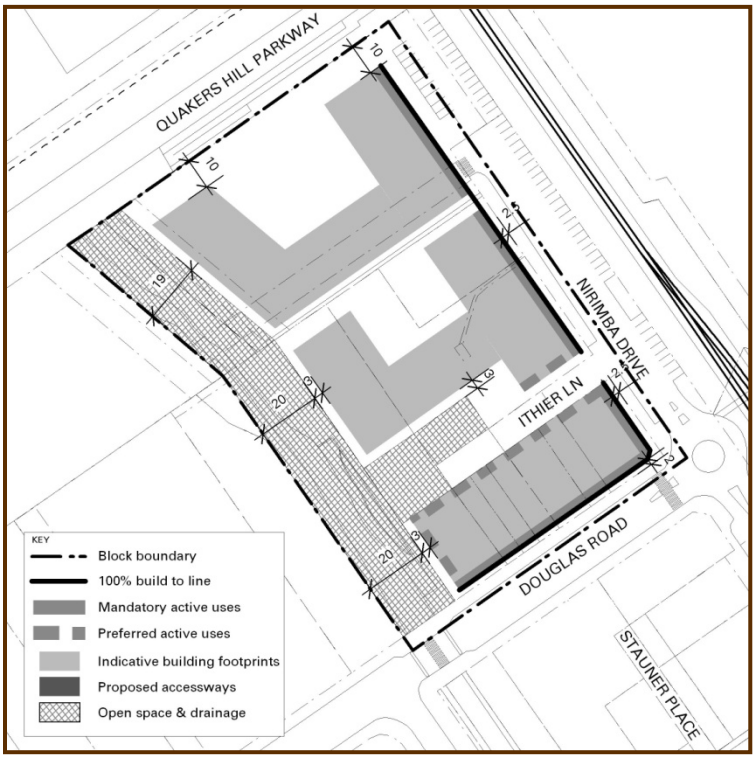
(2) Whilst it is expected that the Quakers Inn and Telstra Buildings will remain in their current form for the foreseeable future, any future development should achieve the outcomes shown in **Figure 3**.

(3) Building heights and forms define the street edge and stormwater channel generally in accordance with **Figure 3**.

(4) Pedestrian amenity along Douglas Road is improved through widened footpaths, and installation of awnings. Pedestrian amenity along Nirimba Drive is improved through widened footpaths, active uses at ground level and awnings.

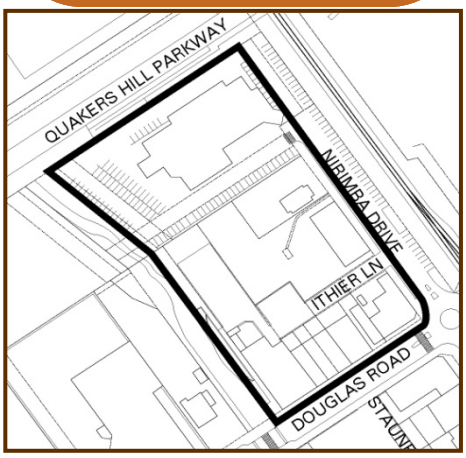
(5) Ithier Lane is extended to provide a pedestrian link to the stormwater channel and vehicular access to basement car parks.

(6) A new landscaped square is provided at the end of Ithier Place, connecting to the open space in the drainage channel.



3

BLOCK BY BLOCK CONTROLS



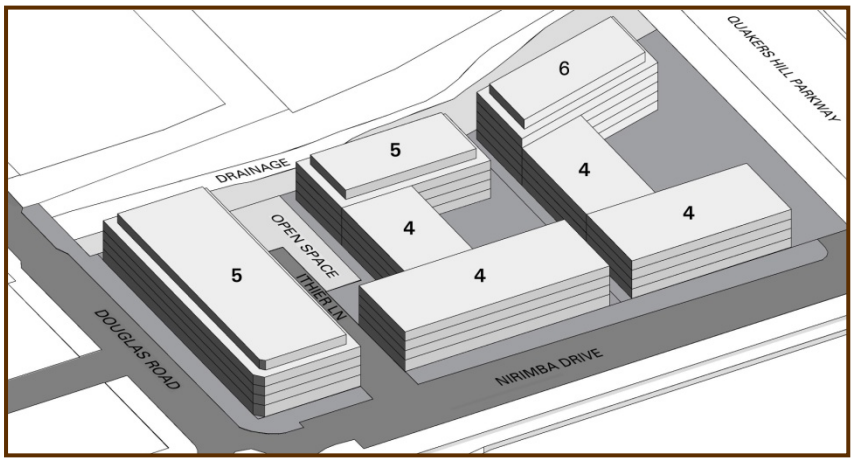


Figure 8.3
Block 2 (Nirimba Drive)



The above image illustrates maximum building block envelopes. These are larger than the actual buildings that will be achievable under this section (refer to Section 4.2).

3.3 Block 3 – Douglas Road

The Douglas Road Block is bounded by Douglas Road, the stormwater channel, Quakers Hill Parkway and residential zoned land. The block is generally vacant with the exception of the Quakers Hill Plaza – a 2 storey retail and commercial development fronting Douglas Road.

3.3.1 Development Outcomes

Development within the Douglas Road Block is to provide the following outcomes:

(1) The majority of the Douglas Road frontage of the block is activated through non-residential uses at ground floor built to the street edge. At least one tenancy with a floor plate of a minimum of 1,000m^2 and suitable for a small supermarket is to be provided. An adequate amount of at-grade parking is to be provided adjacent the retail uses for convenient, short stay parking.

(2) Pedestrian amenity along Douglas Road is improved through widened footpaths and awnings.

(3) A publicly accessible access way is to be provided through the site to enhance pedestrian permeability, to provide buildings at the rear of the block with a 'street address' and to provide vehicular access to basement car parks. The access way is to incorporate pedestrian footpaths and street tree planting.

(4) The rear of the block is developed for residential uses with buildings set around a communal landscaped courtyard generally in accordance with **Figure 4**. A range of housing types including terraces, apartments (with lifts) and shop top housing is to be provided.

(5) Building heights and forms are stepped to provide an appropriate transition between the adjacent residential land, generally in accordance with **Figure 4**. Buildings fronting Douglas Road are not to overshadow dwelling houses on the southern side of Douglas Road.

(6) Visual and acoustic impacts associated with the Quakers Hill Parkway interface are minimised through landscape screening, building design and

construction.

(7) Land (between 5m and 10m) adjacent to the stormwater channel is landscaped and provided for public access to enhance the amenity of the channel.

(8) Where possible, existing significant trees are maintained and incorporated into landscaped areas.



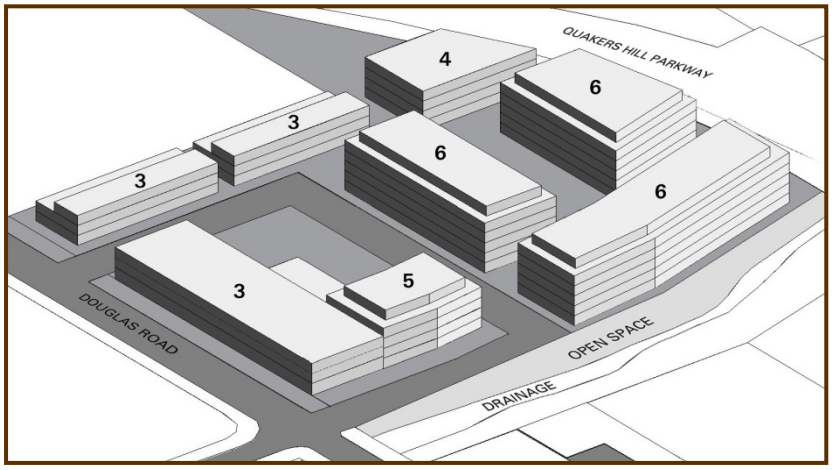


Figure 8.4
Block 3 (Douglas Road)

The above image illustrates maximum building block envelopes. These are larger than the actual buildings that will be achievable under this section (refer to Section 4.2).

3

BLOCK BY BLOCK CONTROLS

4.0 DETAILED DESIGN GUIDELINES

4

DETAILED DESIGN GUIDELINES

The following section sets out the detailed design guidelines for all development within the village. They are to be read in conjunction with the block by block controls set out in Section 3.0 of this section.

4.1 Amalgamation and Subdivision

Objectives

(1) To ensure coherent redevelopment of the town centre and avoid isolation of smaller land parcels.
(2) To minimise the number of driveway crossings and car park entries along a street.

Controls

(1) Amalgamation and subdivision is to facilitate the achievement of the relevant development outcomes identified in Section 3.0 of this section.
(2) An applicant is to demonstrate to Council that, given the built form provisions of this section, the exclusion of an adjacent / adjoining allotment from their site will not adversely affect the development potential of that allotment.

4.2 Building Form and Height

Objectives

(1) To define the bulk, height and scale of development throughout the urban village.
(2) To ensure that the bulk of the development is in scale with the existing and desired future context.
(3) To provide adequate amenity for building occupants in terms of sun access and natural ventilation.

Controls

(1) All developments are to demonstrate that the gross floor area (GFA) achieved occupies not more than 75% of the gross building area (GBA) of the building envelopes illustrated at Section 3.0 (refer to Part 01 of the *Residential Flat Design Code 2002*).
(2) Building heights (in storeys) are to be consistent with **Figures 2 – 4**. For the purposes of calculating storeys, any basement car park that is in excess of 1.5m above natural ground level will be considered a storey.
(3) The maximum allowable depth of residential building envelopes is 22m (max 18m glass line to glass line), unless otherwise illustrated in Section 3.0.
(4) It is noted that there is no automatic right to achieve the building envelopes and heights in this section. The intensity of development allowed will depend on satisfactorily meeting the full range of development controls in the section.

4

DETAILED DESIGN GUIDELINES

4.3 Non-Residential Land Uses

Objective

(1) To ensure non-residential development achieves a high level of urban design quality.

Controls

(1) Development proposals containing only non-residential land uses are to consider the relevant development outcomes contained at Section 3.0 of this DCP as well as the following sections (where relevant): 4.1, 4.2, 4.4, 4.5, 4.6, 4.7, 4.10, 4.11, 4.12, 4.14, 4.17, 4.18, 4.19, 4.22, 4.23, and 4.24.

(2) Development proposals containing only non-residential land uses only are also to consider the provisions contained in Blacktown DCP 2006 Part D (Development in Business Zones).

4.4 Building Separation and Boundary Setbacks

Objectives

(1) To provide visual and acoustic privacy for existing and new residents.
(2) To control overshadowing of adjacent properties and private and shared open space.
(3) To allow for the provision of usable open space between buildings.
(4) To establish the desired spatial proportions of the street, and to define the street edge.
(5) To minimise the impact of development on light, air, sun, privacy, views and outlook for neighbouring properties, including future buildings.
(6) To reduce the impact of the higher levels of buildings as viewed from street level.

Controls

(1) New development is to achieve the boundary setbacks shown at **Figures 2 – 4**.

(2) All land required for footpath widening is to be dedicated to Council and its embellishment undertaken at the time of redevelopment. Such works may be offset against relevant Section 94 Contributions.

(3) The following building separation requirements apply to all new development up to 4 storeys (refer to **Figure 5**);
   (i) 12m between habitable rooms and balconies;
   (ii) 12m between habitable rooms;
   (iii) 12m between balconies;
   (iv) 6m between non-habitable rooms.
   (v) 6m between non-habitable rooms and balconies.

   The following building separation requirements apply to all new development over 4 storeys:
   (i) 18m between habitable rooms and balconies;
   (ii) 13m between habitable rooms and balconies/non-habitable rooms; and
   (iii) 9m between non-habitable rooms.

(4) New development is to be setback at least 6m from adjacent residential zoned land.

(5) New development is to achieve the 'build to lines' shown at Figures 2 – 4. The 100% 'build to line' applies to the ground floor only of a development and refers to the alignment of the external face of a building (ie a continuous building with a zero setback along the street alignment).

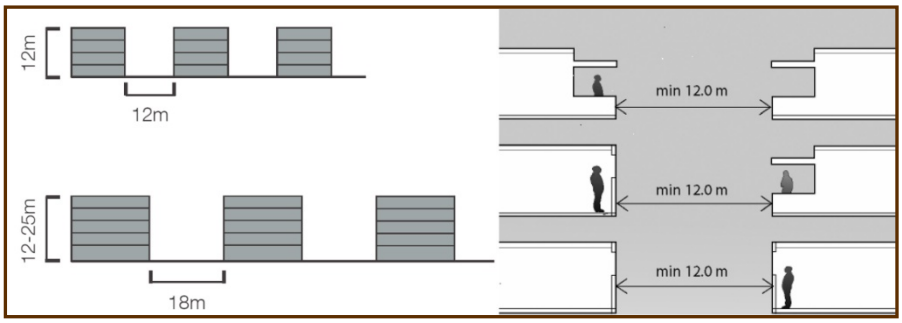


Figure 8.5
Typical Building Separation Requirements

4.5 Ground Level Active Frontages

Objectives

(1) To ensure adequate non-residential land uses are provides within the village.
(2) To enhance the vitality, activity and safety of the pubic domain.

Controls

(1) Active uses are to be provided in accordance with **Figures 2 – 4**.
(2) 'Active uses' include non-residential uses such retail shops, community facilities and the like. Lobbies for residential uses above are permitted. Outdoor eating / seating is encouraged along mandatory active use frontages.
(3) Commercial uses are preferred at first floor level.
(4) Basement car park entries, service areas, blank walls and the like are to be avoided on mandatory active use frontages.
(5) Where active uses are mandatory, shopfronts should be generally glazed to enhance pedestrian interaction.

4.6 Awnings and Pedestrian Amenity

Objectives

(1) To provide pedestrian amenity and streetscape continuity.
(2) To ensure awnings are designed to acceptable dimensions and materials.

Controls

(1) Continuous awnings are required to be provided along the ground floor street frontage in accordance with **Figure 6**.
(2) Awnings should be a minimum height of 2.7m (3.2m desirable) above footpath level and generally consistent in form with adjacent awnings.
(3) Steep pitched awnings should be avoided.
(4) Under awning lighting is to be provided to enhance pedestrian amenity and safety.

4 DETAILED DESIGN GUIDELINES



(5) Any glazing used is not to transmit excessive heat in summer.

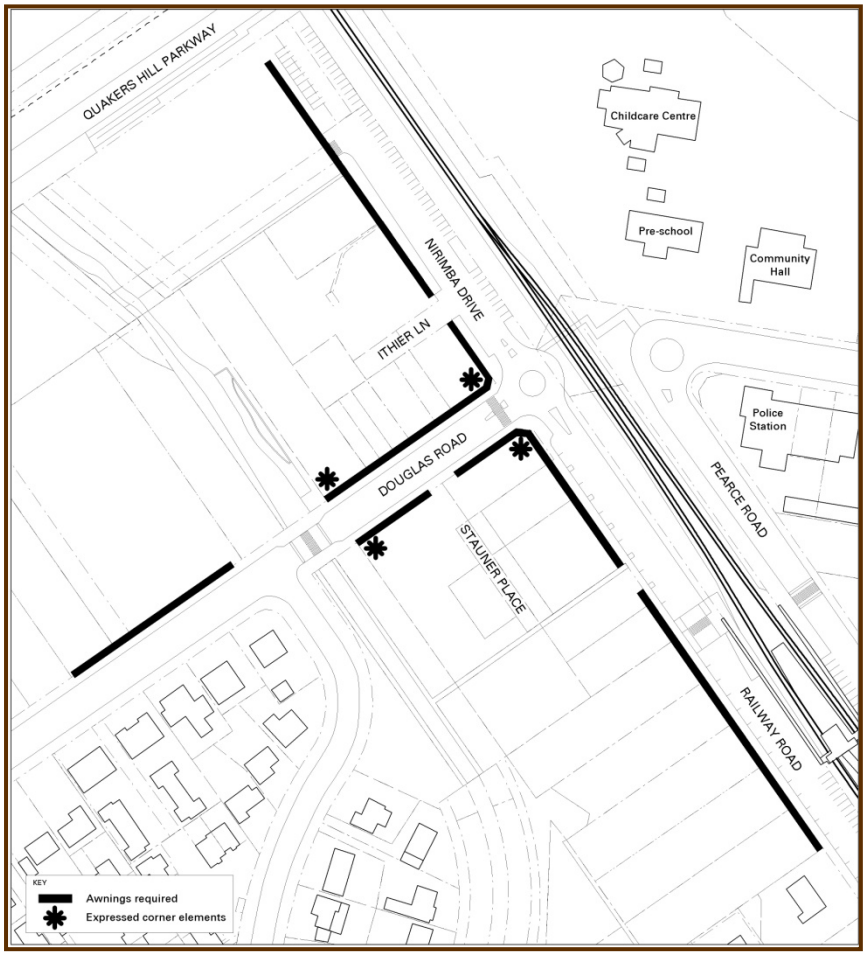


Figure 8.6
Awnings and Expressed Corners Plan

4.7 Facades and Articulation

Objectives

(1) To ensure that new developments define and enhance the public domain and desired street character.
(2) To encourage building massing and articulation that creates strong corner buildings.

Controls

(1) When fronting a street, access way or open space, the facade of a building is to incorporate a 2.5m setback zone above ground level (see **Figure 7**). Within this zone, building facades are to be suitably staggered to achieve articulation.
(2) Balconies are permitted within the 2.5m setback zone (to encourage facade articulation) but must not extend beyond the property boundary.
(3) Expressed corner elements are to be provided in locations shown at Figure 6.
(4) Building height, massing, materials and roof expression should be used to accentuate corner elements.

4 DETAILED DESIGN GUIDELINES





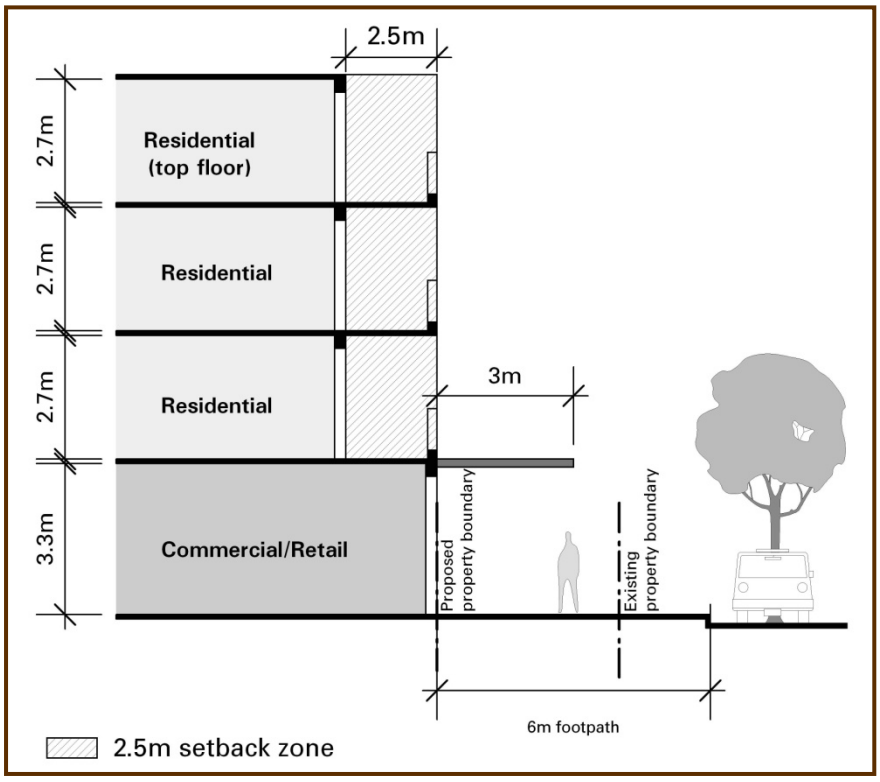


Figure 8.7
The 2.5m setback zone above ground level

4 DETAILED DESIGN GUIDELINES



4.8 Upper Level Setbacks and Roof Design

Objectives

(1) To reduce the perceived height and bulk of buildings when viewed from the public domain.
(2) To provide quality roof designs which contribute to the overall design quality and performance of buildings.

Controls

(1) Buildings are to include distinctive roof forms that contribute to the architectural design of a building. Elements such as parapets, skillion roofs, eaves should be utilised where appropriate.
(2) Where illustrated at **Figures 2 – 4**, the upper most level of a building is to be setback at least 3.5m from the floor below (see **Figure 8**). Lightweight elements such as pergolas, sunscreens and architectural elements may encroach within this setback zone.
(3) Roof forms should not result in excessive bulk and overshadowing.
(4) All plant and lift over-runs are to be concealed within roof forms to minimise visual impact.
(5) The use of roof areas for private / communal open space and gardens is encouraged. Such spaces should be designed to minimise privacy impacts on neighbours.
(6) For development in close proximity to the rail corridor, balconies and windows are to be designed so as to prevent objects being thrown onto Railcorp's facilities. Refer to the relevant Building Code of Australia

(BCA) standards and the Railcorp Electrical Standards.

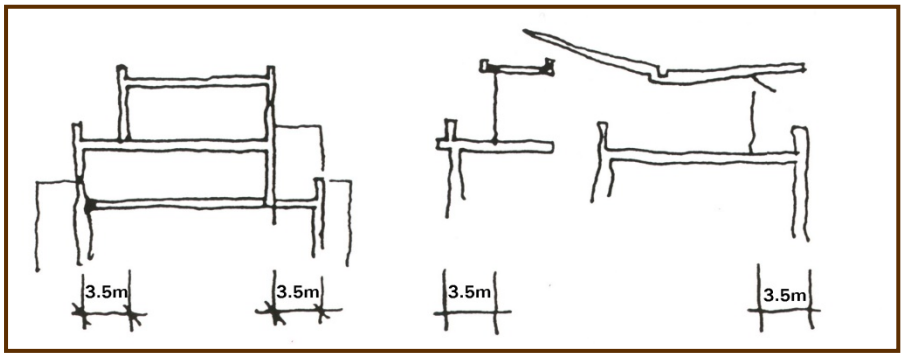


Figure 8.8
Indicative Upper Level Setbacks

4 DETAILED DESIGN GUIDELINES

4.9 Private Open Space and Balconies

Objectives

(1) To improve the liveability of units by providing high quality, appropriately sized private open space.
(2) To ensure balconies and private courtyards are integrated into the overall architectural form of buildings.

Controls

(1) Every unit is to be provided with at least one private open space in the form of a balcony, terrace or courtyard. Secondary private open spaces, such as Juliet balconies, are encouraged for larger units.
(2) The minimum private open space required for a studio / 1 bedroom unit is 7.5m^2. At least 10m^2 is to be provided for 2 and 3 bedroom units.
(3) All primary balconies are to have a minimum width 3m and depth of 2.5m.
(4) Private open spaces are to be located directly adjacent to the main living area of a unit.
(5) The design and detail of balconies is to consider the following elements:
    (i) the use of a combination of solid and transparent balustrades should enhance the facade composition of the building,
    (ii) utilisation of moveable screens, sun screens, pergolas, shutters to control sunlight, wind and to provide additional privacy, and
    (iii) recessed and partially recessed balconies are preferred to projecting balconies.
(6) The private open space of ground floor units should be screened from the street and public spaces for privacy. Ideally, ground floor open space should be raised above the adjacent public street and space by no more than 1m.



4

DETAILED DESIGN GUIDELINES

4.10 Landscaping and Communal Open Space

Objectives

(1) To ensure a high quality landscape design is provided within developments.
(2) To enhance the amenity, views and outlook within developments.
(3) To provide residents with passive and active communal recreational opportunities.

Controls

(1) All landscaping work is to enhance the existing natural features of the site and adjoining unfenced areas.
(2) Where possible, existing vegetation is to be retained and incorporated within the landscape of a site.
(3) All parts of the site not built-upon or paved are to be landscaped with grass, trees, shrubs and/or other vegetation. As many trees as possible are to be retained on the site.
(4) Development is to contribute to water and stormwater efficiency by integrating landscape design with water and stormwater management, for example, by:
    (i) using plants with low water demand to reduce mains consumption;
    (ii) using plants with low fertiliser requirements;
    (iii) using plants with high water demand, where appropriate, to reduce run off from the site;
    (iv) utilising permeable surfaces;
    (v) using water features; and
    (vi) incorporating wetland filter systems.
(5) Unless otherwise advised by Council, landscape design and planting of the site should include the footpath nature strip. The developer is to liaise with Council to provide co-ordination between the site and the streetscape.
(6) Each DA is to be accompanied by a detailed landscape plan including details of any significant trees requiring removal. Applicants should note that Clause 25 (Tree Preservation) of *BLEP 1988* states that no tree is to be lopped or removed without Council's consent. A tree survey identifying trees to be retained or removed to be submitted with any DA. An arborist's report may also be required.
(7) A "tree" is defined in *BLEP 1988* as a perennial plant at least 1m high which would attain a height in excess of 3m if permitted to grow to maturity.
(8) The plan should also indicate:
    (i) areas where earth shaping is proposed;
    (ii) areas which are to be embellished for purely visual effect;
    (iii) areas intended for recreation purposes;
    (iv) areas required for the on-site detention of stormwater; and
    (v) proposed paving treatment for main entry points and pathways.
(9) Common open space on rooftops must be included in the detailed landscape strategy and plan.
(10) Common open space is to be provided, generally in the form of central courtyards.
(11) Deep soil planting zones are required within development sites to facilitate the accommodation of mature tree planting.



4 DETAILED DESIGN GUIDELINES

4.11 Fencing and Walls

Objectives

(1) To define the edges between public and private land.
(2) To ensure fences and walls enhance a development's landscape setting.

Controls

(1) Screen walls which face a road, pedestrian walkway, reserve or public place shall be constructed from high quality materials. Consideration is to be given to sight lines for vehicles.
(2) Landscape proposals are to contribute to the amenity, beauty and useability of private and communal open spaces by incorporating some of the following in the design of fences and walls:
    (i) benches and seats;
    (ii) planter boxes;
    (iii) pergolas and trellises;
    (iv) barbeques; and
    (v) water features.
(3) Site boundaries not fronting a street, pedestrian walkway, reserve or public place shall be fenced in accordance with Council's requirements, at full cost to the developer.
(4) Common open space areas are to be enclosed by open style fencing, such as pool fencing and provided with a latch-top childproof gate, to ensure suitable security.
(5) Clothes drying areas should be located away from the street or public places. Where this cannot be avoided, they shall be totally screened from public view.
(6) Screen walls are to be 1.8m high and are not to contain any windows of an adjoining dwelling unit.
(7) Swimming pools shall be fenced in accordance with the provisions of the *Swimming Pools Act 1990*.
(8) Details of fencing must be shown on the submitted plans and landscape plans.

4.12 Signage and Outdoor Advertising

Objectives

(1) To ensure that signage and advertising structures are unobtrusive and co-ordinated.

Controls

(1) All signage is to be consistent with the provisions of *SEPP 64 (Advertising and Signage)*.
(2) Signage should be integrated with the design of the development by responding to scale, proportions and architectural detailing.
(3) Provide clear and legible 'way-finding' for residents and visitors.

4

DETAILED DESIGN GUIDELINES

4.13 Service Lanes and Accessways

Objectives

(1) To ensure developments are provided with have suitable loading and service access and facilities.
(2) To minimise the visual impact of car park entries and service / delivery areas.

Controls

(1) Access ways are to be provided generally in accordance with **Figures 2 – 4**. Access ways can either be publicly or privately owned. They have a reserve of approximatley12m (dependant upon traffic volumes) allowing for footpaths (min. 2m wide), a parking lane and street tree planting.
(2) Access ways may be in the form of a private road but should have the appearance of a 'public road' with street tree planting, pedestrian footpaths and appropriate way-finding signage.
(3) All service and delivery activities are to be accessed from an access way where one is required.
(4) All public access ways shall be constructed to Council's standards appropriate to the type and volume of traffic it is assessed they will carry.
(5) Council will assess the suitability of access ways for cars and garbage trucks by reference to the standards contained in Chapter 6 of the Roads and Traffic Authority publication "*Guide to Traffic Generating Developments*".
(6) Loading and courier facilities for retail/commercial development are to be provided in accordance with Blacktown DCP 2006, Part D (Development in the Business Zones).

4.14 On-Site Parking

Objectives

(1) To minimise car dependency for commuting and recreational transport use and to promote alternative means of transport-public transport, bicycling, and walking.
(2) To provide adequate on-site parking for commercial / retail users and visitors.
(3) To integrate the location and design of car parking with the design of the site and the building so as to minimise the visual impact of car parking and driveways.

Controls

(1) On-street, short stay parking is to be retained and increased where possible to ensure convenient, retail parking is maintained.
(2) All parking for non-residential uses is to be provided in accordance with Section 5, Blacktown DCP 2006, Part A (Introduction and General Guidelines) as follows:
    (i) Commercial / office premises – 1 space per $40m^2$ GFA
    (ii) Retail shops / showrooms – 1 space per $22m^2$ GFA (for shops $200m^2$ or greater) and 1 space per $30m^2$ GFA (for shops less than $200m^2$)
    (iii) Supermarkets / vegetable & fruit market - 1 space per $22m^2$ GFA (for

shops 200m^2 or greater) and 1 space per 30m^2 GFA (for shops less than 200m^2), and

(iv) Restaurant (other than fast food, drive in or takeaway) – 1 space per 10m^2 of dining area, plus 1 space per 2 employees.

(3) For residential uses, all parking shall be provided on the development site in accordance with the following maximum rates:
- (i) 1 bedroom / studio - 1 space per dwelling,
- (ii) 2 bedrooms – 1 space per dwelling,
- (iii) 3 bedrooms – 2 spaces per dwelling, and
- (iv) Visitor parking – 1 space per 2.5 units.

(4) Where two spaces are provided for a single dwelling, parking may be provided in a "stack parking" configuration.

(5) On-site parking is to be designed in accordance with Blacktown DCP 2006, Part A (Introduction and General Guidelines).

(6) Minimum dimensions for any covered car parking shall be 3m x 6m. Minimum dimensions for any uncovered car parking space shall be 2.5m x 5.2m. Aisle widths must comply with *Australian Standard AS2890.1 (Off Street Parking – 1993).*

(7) Visitor parking must be accessible at all times.

(8) Adequate and secure bicycle storage areas are to be provided for all new developments.

4.15 Access and Adaptability

Objectives

(1) To ensure that all residents, including aged and disabled persons, users of strollers and wheelchairs and people with bicycles, are able to reach and enter their apartment and use communal areas via minimum grade ramps, paths, access ways or lifts.

(2) To ensure the accommodation needs of the aged and disabled persons are appropriately catered for.

Controls

(1) Pedestrian entries to the residential component of a mixed use development are to be separated from other uses in a building.

(2) Not less than 10% of units in a development or one unit (whichever is greater) shall be adaptable units designed for persons with a disability in accordance with *Australian Standard AS 4299.*

(3) Parking provision shall be provided at a rate of not less than one disabled access space per adaptable unit in accordance with *Australian Standard AS2890.1* and Part D 3.2(c) of the BCA. Such parking is to be located within a basement close to a lift that provides access to the adaptable unit, or located at ground level.

(4) Parking provision is to be made for aged and disabled customers and staff of the retail / commercial component in accordance with *Australian Standard AS2890.*1.

(5) Buildings containing 4 or more levels, including the basement, must be provided with lift access to all levels.

(6) Where no lift is proposed, adaptable units shall be located at ground level and provided with a safe path of travel (from the unit entrance to the street) in accordance with the BCA Part D 3.2(c).

4

DETAILED DESIGN GUIDELINES

4.16 Dwelling Mix and Internal Amenity

Objectives

(1) To ensure a mix of unit types to accommodate a range of household types that meet the future demands of the local population.
(2) To ensure that buildings are efficient and provide high levels of residential amenity in terms of daylight and space.
(3) To provide adequate storage for everyday household items within easy access of the unit.

Controls

(1) All developments shall contain a mix of studio, 1, 2 and 3 bedroom units to the satisfaction of Council.
(2) All units are to comply with the following minimum areas (internal):
  (i) Studio – 40m^2
  (ii) 1 bedroom units – 50m^2
  (iii) 2 bedroom units – 80m^2
  (iv) 3 bedroom units – 120m^2
(3) Cross-over or cross through units over 15m deep are to be at least 4m wide.
(4) All developments are to comply with the following minimum floor to ceiling heights:
  (i) ground floor – 3.6m for non-residential uses and 2.7 for residential uses, and
  (ii) first floor and above- 2.7m for habitable rooms and corridors, 2.4m for non-habitable rooms and second storey of 2 storey units.
(5) Double height spaces with mezzanines are to be counted as 2 storeys.
(6) Common corridors and lobbies are to:
  (i) provide clear sight lines whilst avoiding tight corners,
  (ii) be naturally lit and ventilated where possible, and
  (iii) provide access to generally no more than 10 units.
(7) Storage should be provided in accordance with the following rates:
  (i) Studios / 1 bedroom units – 6m^3
  (ii) 2 bedroom units – 8m^3
  (iii) 3 bedroom + units – 10m^3
(8) At least 50% of the required storage should be preferably located within the unit, with the remainder provided in a basement within dedicated, secure storage areas.

"Habitable room" means a room used for normal domestic activities and:
(a) includes a bedroom, living room, lounge room, music room, television room, kitchen, dining room, sewing room, study, playroom, family room and sunroom; but
(b) excludes a bathroom, laundry, water closet, pantry, walk-in wardrobe, corridor, hallway, lobby, photographic darkroom, clothes-drying room, and other spaces of a specialised nature occupied neither frequently nor for extended periods.

4

DETAILED DESIGN GUIDELINES

4.17 Visual and Acoustic Privacy

Objectives

(1) To ensure a high level of amenity by protecting the privacy of occupants of residential dwellings.

Controls

(1) Visual privacy is to be maintained by:
  (i) laying out buildings and windows to avoid overlooking opportunities;
  (ii) separating facing windows by a suitable distance;
  (iii) off-setting facing windows;
  (iv) admitting light through windows which are narrow or opaque;
  (v) ensuring that windows do not face directly onto the windows, balconies or courtyards of adjoining dwellings; and
  (vi) screening opposing windows, or balconies overlooking courtyards using either fixed screens or via landscaping.

(2) Noise disturbance is to be minimised by:
  (i) locating active recreation facilities, such as swimming pools, away from the bedroom areas of adjoining dwellings;
  (ii) designing communal areas and vehicle driveways to minimise reflected noise;
  (iii) ensuring that operating plant or equipment does not disturb neighbours;
  (iv) avoiding noisy walking surfaces, such as suspended timber or metal decks, and reflective internal surfaces to hallways or other communal areas;
  (v) ensuring that plumbing noise between dwellings and between buildings is eliminated or contained by the use of ducts and ensuring wherever possible that bedrooms or living spaces do not back onto the bathroom or toilet walls of adjacent flats; and
  (vi) new buildings adjacent to the boundary of Quakers Inn must incorporate noise attenuation measures to minimise noise transfer from Quakers Inn, by installing sound insulation, double glazed windows and other similar measures as appropriate.

(3) No electrical, mechanical or hydraulic plant or equipment shall generate a noise level greater than 5dBA above the ambient L90 sound level at the boundaries of any allotment at any time of day.

(4) Windows and balconies of dwellings should be separated or screened from common use areas such as paths, driveways, common open space, etc. Screens could include courtyard walls, hedges and fences, whilst separation could be achieved by either distance or changes in level.

(5) Development in close proximity to the rail corridor is to have regard to the following Railcorp documents (see: http://www.railcorp.info/about_railcorp/environmental_guidelines):
  (i) Interim Guidelines for Councils – Consideration of rail noise and vibration in the Planning Process, and
  (ii) Guidelines for Applicants – Consideration of rail noise and vibration in the Planning Process.

(6) Railcorp is to be notified of any development works occurring in close

proximity to the rail corridor.

4.18 Safety and Security

Objectives

(1) To ensure the safety of the public domain for residents, visitors and employees.
(2) To ensure the security of the private domain of residents.

Controls

(1) Active uses are encouraged at ground level to enhance activation of the street.
(2) Buildings are to be designed to overlook streets and public and communal spaces to provide casual surveillance.
(3) Blank facades and garages are not to dominate the streetscape. Opportunities for personal concealment are to be minimised in building design.
(4) The use of roller shutters is not permitted on doors and windows facing the street or public open space. Any security railings must be designed to complement the architecture of the building.
(5) Adequate lighting and directional signage is to be provided to all pedestrian ways, access ways, building entries, driveways and car parks to ensure a high level of safety and security for residents, employees and visitors at night.
(6) All developments are to incorporate the principles of Crime Prevention Through Environmental Design (CPTED). When assessing applications, Council is to consider Department of Planning guidelines for '*Crime Prevention and the Assessment of Development Applications*.' Also refer to Section 7.4 in Part A (Introduction and General Guidelines) of *Blacktown DCP 2006*.
(7) Security devices such as electronic card/remote control and intercoms will be required to provide security for residents.

4

DETAILED DESIGN GUIDELINES

4.19 Solar Access and Overshadowing

Objectives

(1) To ensure buildings are designed to optimise solar access to habitable rooms and private open space.
(2) To minimise overshadowing of adjoining residentially zoned land.

Controls

(1) Building design and site layout is to ensure adequate sunlight access to the internal living spaces of the proposed and adjoining developments.
(2) Developments should be planned to optimise solar access by:
    (i) positioning and orientating walls of flat buildings to maximise north facing walls (ie walls facing between 30 degrees east and 20 degrees west of north); and
    (ii) selecting apartment plan types which maximise living spaces within buildings with a north orientation (eg apartments which run the full width of the development block and face north).
(3) Single aspect units are to be limited to a depth of 8m. South facing, single aspect units are to be minimised.
(4) Buildings are to incorporate shade and glare control devices such as eaves, awnings, balconies, louvres and pergolas, particularly on western and northern elevations and windows.
(5) DAs must include shadow diagrams showing the impact of the proposal on the site and on adjoining sites between the hours of 9am and 3pm on 21st June.
(6) At least 50% of the principal area of ground level open space in adjacent properties shall not have their level of solar access reduced to less than 2 hours between 9.00 am and 3.00 pm on the 21st of June. In cases where the level of solar access is already less than this, sunlight shall not be further reduced by more than 20%.
(7) Buildings within the proposal are designed to ensure that 50% of the common open space area of the proposed development at ground level receives a minimum of 3 hours of sunlight between the hours of 9.00 am and 3.00 pm on 21st June.
(8) Living rooms and private open spaces for at least 70% of apartments in the development must receive a minimum of 3 hours direct sunlight hitting their primary window surfaces between 9 am and 3pm on 21 June.

4

DETAILED DESIGN GUIDELINES

4.20 Natural Ventilation

Objectives

(1) To ensure that apartments are designed to provide all habitable rooms with direct access to fresh air and to assist in promoting thermal comfort for occupants.
(2) To reduce energy consumption by minimising the use of mechanical ventilation, particularly air conditioning.

Controls

(1) Building depths should range between 10m and 18m to support natural ventilation.
(2) At least 60% of dwellings should be naturally cross ventilated.
(3) Internal layouts should promote natural ventilation as shown at **Figure 9**.

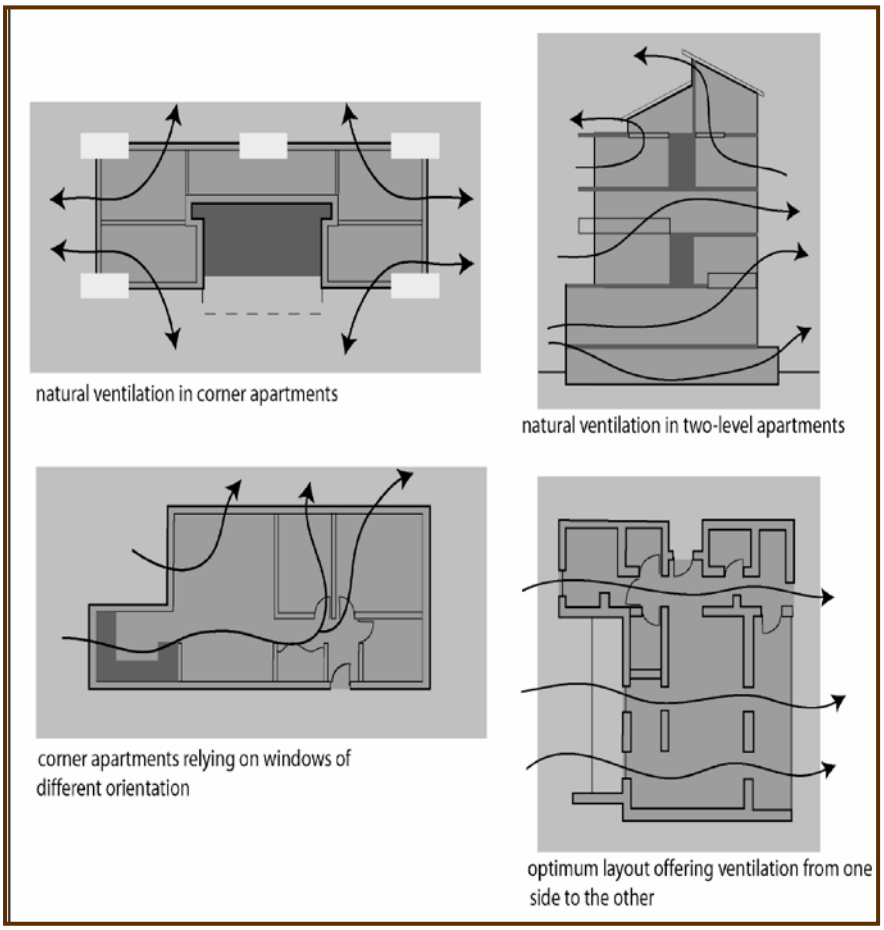


Figure 9: Internal layouts to promote natural ventilation

Figure 8.9
Internal Layouts to promote Natural Ventilation

4.21 Energy Efficiency and Sustainability

Objective

(1) To ensure new development is efficient in terms of energy consumption and water use.

Controls

(1) Upon adoption of BASIX for multi-unit dwellings (1 October 2005), all residential development is to incorporate the requirements of the BASIX planning tool.
(2) Any development shall, in the interim, provide a minimum NATHERS energy rating of 4 stars. The plans are to be certified by a suitably qualified consultant and appropriately stamped with the NATHERS rating.

4.22 Waste Management

Objectives

(1) To plan for the types, amount and disposal of waste to be generated.
(2) To ensure the adequate and visually appropriate storage and collection of waste.

Controls

General

(1) The waste management system (including location of storage areas, bin rooms, chutes etc) should be designed and located to minimise aesthetic, odour and noise impacts on residents.
(2) Garbage and recycling facilities are to be provided in a manner that meets health, safety and environmental standards and promotes waste minimisation principles. As a minimum, provision must be made for separate garbage and recycling collections.
(3) A Waste Management Plan must be submitted outlining who will be responsible for maintaining and monitoring the waste management system for the development. Each application will require documentation of the requirements listed above and will be determined on its merits.

Non-residential uses

(4) The waste management infrastructure and systems for residential and non-residential uses must be independent of and physically separated from each other.
(5) Non-residential tenants must have a dedicated area / room for the storage of waste (both garbage and recycling). Adequate area must be provided to store waste and recycling bins to meet the generation needs of the anticipated non-residential tenants.
(6) Council may consider servicing the garbage requirements of the non-residential uses, depending on the waste management system proposed and its compatibility with Council's standard system.

4 DETAILED DESIGN GUIDELINES

Collection

(7) Applicants must demonstrate that on-street collection utilising Council's kerbside collection system is practicable, or alternatively make provision for on-site collections utilising one or a combination of the following alternatives:
  (i) collections utilising Council's 240 litre MBG (wheelie bin) collection,
  (ii) collections utilising Council's bulk waste collection contractor and bin recycling collection, and
  (iii) collections utilising private contractors for the collection of both garbage and recyclable materials.

(8) Where kerbside collections are provided, all waste and recycling bins are required to be placed adjacent to the kerb on the appropriate day of collection and returned to the garbage room within 12 hours of collection.

(9) Where internal collections are provided:
  (i) Roads, driveways, loading docks and footpath kerb crossings or other areas accessed for waste and recycling servicing must be designed and constructed to the standard required for a 11m large rigid truck with a turning circle of 25m to withstand a load of 25.5 tonnes to accommodate garbage trucks.
  (ii) Collection vehicles should not be in the position that they obstruct access or egress by other vehicles and consideration must be taken for the contractors who may have additional requirements to facilitate collection.
  (iii) Council will require the owner/s of the building to provide indemnity prior to collection services commencing, indemnifying Council against any damage to the building caused by the collection of garbage, recyclables or waste by Council vehicles, or contractors acting on behalf of Council, unless such damage is caused by an act of negligence by the collection operator.
  (iv) A positive covenant and/or easement is to be created under Section 88B of the *Conveyancing Act 1919* over that portion of the driveway shared by resident and garbage collection vehicles. It is to be structurally designed by a chartered professional engineer to a length of no less than 10 metres, a width of no less than 5 metres and to withstand a load of 25.5 tonnes to accommodate garbage trucks.
  (v) Where on-site collections are provided, provision must be made for safe manoeuvring of the vehicle on the site and egress and access should be in a forward direction.

(10) In order to facilitate efficient waste collection, the collection point must be accessible to the garbage collection vehicles. In such circumstances, and where Council agrees to collect waste on site or permits the on site collection of waste by a private contractor, the following should be given consideration:
  (i) the convenient placement of the garbage and recycling room;
  (ii) turning circles (minimum 25m) and height requirements (minimum 6.4m) on site to facilitate movement of garbage collection vehicle; and
  (iii) legality of access.

Waste and recycling storage area and bin requirements

(11) The volumes required for the waste and recycling requirements for the residential portion of a development are as follows:
  (i) For developments with 1 – 8 dwelling units, provide1 x 240L per unit (collected weekly) for waste, and 1 x 240L MGB per unit (collected fortnightly) for recycling.
  (ii) For development with over 8 dwellings, provide a minimum of 110L per unit (collected weekly) for waste and 90L per unit (collected

fortnightly) for recycling.

(iii) Such rooms need not be accessible to residents where garbage chutes are installed.

(12) The minimum standards for the design of a garbage and recycling room is set out in Blacktown DCP 2006, Part O (Site Waste Management and Minimisation).

(13) Bin standing areas in front of the building line are not encouraged. If this is to be provided, it must be screened from public view with construction materials compatible with the buildings on the site and on adjoining developments.

(14) Where bin storage areas are provided:

(i) The bin standing area must have the floor graded to a floor waste connected to the sewer in accordance with Sydney Water requirements. In addition to this, the area must have a cold water tap to facilitate cleaning and the charging of the floor waste.

(ii) If the building is to be mechanically ventilated, the garbage room must be ventilated in accordance with *Australian Standard AS1668 Part 2*.

(iii) The floors and walls of the garbage room to 2 metres high are to be finished in smooth, impervious, easily cleaned material.

(iv) The junction of walls/floors and walls/walls are to be provided with a covering of 50 mm diameter.

(v) Any external bin storage areas are to be weatherproof.

(vi) All penetrations and cavities are to be sealed to prevent access of vermin.

(15) Any development where each unit is responsible for their own waste, a nominated area of the site, well drained and easily accessible to the collection point will suffice for the storage of garbage and recyclable materials. Where a communal area is appropriate a garbage and recycling room will be necessary. The following are the general principles for the design and location of garbage and recycling rooms on sites:

(i) conveniently located to all units;

(ii) relate to other loading areas;

(iii) adequate weather protection;

(iv) be secure and lockable;

(v) be well ventilated and drained to the sewer;

(vi) complement the design of development on site;

(vii) provide sufficient space for location of all bins and provide adequate space between bins and recycling racks to enable easy servicing; and

(viii) roof drainage is to be directed to the stormwater system.

(16) Garbage chutes should be considered for all developments above 4 stories. Where garbage chutes are provided, recycling storage areas are to be provided on each floor. And each floor shall have an appropriate area, located adjacent to the garbage chute, to house recycling bins for the units on that level. The bins must be arranged so that they are accessible at all times to store recyclables.

4

DETAILED DESIGN GUIDELINES

4.23 Building Services

Objective

(1) To ensure appropriate levels of building services are provided and the visual impact of such services is minimised.

Controls

(1) Provision for all necessary services must be considered at DA stage to avoid the necessity for changing room sizes and ceiling heights later at the Construction Certificate stage.

(2) The external walls of the development shall be maintained free of other services, fixtures and appliances including:
   (i) sewerage stackwork and sanitary plumbing;
   (ii) water plumbing and fixtures;
   (iii) wall mounted air conditioning;
   (iv) air conditioning ductwork; and
   (v) service conduits or wiring (for electricity, telephone, cable television, and data etc.).

(3) No external plumbing is permitted on the building with the exception of stormwater downpipes. No mechanical pumpouts are permitted within the building.

(4) All such services shall be contained within service ducts or plant rooms provided for in the development proposal and documented at DA stage.

APPENDIX A - Development Application Checklist

APPENDIX A

DEVELOPMENT APPLICATION CHECKLIST

Development Applications are to be accompanied by the following information (where relevant). Generally 4 copies of each plan / report are required to be submitted.

- **Completed DA form**, signed by the owner(s) of the development site. This is to be lodged with the applicable **DA fee**.
- **Statement of Environmental Effects** that demonstrates how the proposal meets all relevant objectives and provisions of Blacktown DCP 2006 and should set out measures to be taken to mitigate any likely adverse impact of the proposal.
- **Site Analysis Plan** covering the relevant factors listed at Section 7.8.2 Appendix 2 of Blacktown DCP 2006 Part C (Development in Residential Zones), and Schedule 2 of SEPP 65. As a minimum, the Plan should show the site location, boundary dimensions, site area, north point, existing vegetation and trees, location and uses of existing adjoining buildings, existing site levels and services.
- **Building Plans** showing dimensioned floor plans, elevations of all facades including a schedule of external finishes, colours and textures, sections showing heights and finished ground levels.
- **Landscape Plan** showing planting species, areas of landscaped area, open space areas, fencing treatment etc.
- **Tree Survey Plan / Arborist Report** identifying existing trees, trees to be removed and retained.
- **Integrated Water Cycle Management Report.** See Appendix 2 of Blacktown DCP 2006 Part R (Water Sensitive Urban Design and Integrated Water Cycle Management).
- **Drainage Plan.** See Appendix 2 of Blacktown DCP 2006 Part R (Water Sensitive Urban Design and Integrated Water Cycle Management).
- **Downstream owner's consent, see Section 4.13**
- **Erosion and Sediment Control Plan.** See Appendix 3 of Blacktown DCP 2006 Part R (Water Sensitive Urban Design and Integrated Water Cycle Management).
- **Waste Management Plan** is to be submitted in accordance with Blacktown DCP 2006, Part O (Site Waste Management and Minimisation). The plans and/or accompanying documents (including the waste management plan) should include details of:
  - Bin type, number, size
  - Location and design of waste storage areas/rooms (residential and commercial)
  - Method and frequency of collection
  - Details of Garbage chutes, where applicable
  - Location of collection points for bin servicing
  - Responsibility for movement of bins from storage areas to collection points and retrieved after collection
  - Responsibility for ensuring the system is maintained in a clean condition free of odour and vermin
  - Details on how contamination of the recycling will be minimised
  - Details of collection truck vehicle manoeuvring.
- **Traffic impact Report** addressing the traffic impacts of the proposal on the local road network and assessing the adequacy of on-site parking.
- **A4 Notification Plan** showing site plan and elevations.
- **Acoustic Assessment** for any residential developments located adjacent Quakers Hill Parkway.

- **BASIX Certificate** (in accordance with State Environmental Planning Policy 75 - Building Sustainability Index (BASIX) *see: www.basix.nsw.gov.au.*
- **NatHERS Certificate** (if BASIX is yet to be adopted for multi-unit dwellings) demonstrating a minimum NatHERS rating of 4 stars. The plans are to be certified by a suitably qualified professional and appropriately stamped with the NatHERS rating.
- **Design Verification Certificate** (if applicable) indicating how Design Quality Principles of SEPP 65 have been achieved.
- **Scale model** of the proposed development and immediate context.
- **Photomontages** of the proposed development within its context.
- **Shadow Diagrams** for 9am, 12 noon and 3pm at December 21, June 21 and March 21. Such diagrams should be prepared by an appropriate professional, be based on a survey of the site and buildings on adjoining sites and include details of finished ground levels.

APPENDIX A

DEVELOPMENT APPLICATION CHECKLIST